IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No304

CP(CAA)/9(AHM)2023 in
CA(CAA)/52(AHM)2022

Order under Sections 230-232 of Co. Act, 2013

IN THE MATTER OF:

Nexion International Private Limited
Nexion Surface Private Limited
Simpolo Vitrified Private Limited

.....Applicants

Order delivered on 21/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order. The order is pronounced in open Court vide separate sheet.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT – II)

CP (CAA) No. 9 of 2023
in
CA(CAA) No. 52/NCLT/AHM/2022

[Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Scheme of Arrangement

Between

Nexion International Private Limited
("Demerged Company" or "Petitioner Company 1"),

And

Nexion Surfaces Private Limited
("Resulting Company 1" or "Petitioner Company 2")

And

Simpolo Vitrified Private Limited
("Resulting Company 2" or "Petitioner Company 3")

And

Their Respective Shareholders

Order Pronounced on : 21.07.2023

Coram:
Mr. Shammi Khan,
Hon'ble Member (Judicial)

Mr. Ajai Das Mehrotra
Hon'ble Member (Technical)

MEMO OF PARTIES

Nexion International Private Limited
(CIN:U26933GJ2014PTC081644)
A Company incorporated under the
provisions of Companies Act, 2013
having its Registered Office at
Office no. 1104 and 1105, Shapath V,
Opp Karnavati Club,
S.G. Highway, Ahmedabad 380015,
in the State of Gujarat.

... Petitioner Company 1/
Demerged Company

Nexion Surfaces Private Limited
(CIN:U26990GJ2022PTC130486)
A Company incorporated under the
provisions of Companies Act, 2013
having its Registered Office at
Old Ghuntu Road, B/h. Silvenia Ceramic,
8-A National Highway, Morbi, Rajkot 363642
in the State of Gujarat.

... Petitioner Company 2 /
Resulting Company 1

Simpolo Vitrified Private Limited
(CIN:U26914GJ2007PTC051766)
A Company incorporated under the
provisions of Companies Act, 1956
having its Registered Office at
survey no. 606, Tal. Morbi, Ghuntu 363642
in the State of Gujarat.

... Petitioner Company 3/
Resulting Company 2

For the Petitioners	:	Mr. Ravi Pahwa, Advocate.
For the Income Tax	:	Ms. Kinjal Trivedi, Advocate for Ms. Maithili D Mehta, Advocate.
For the Regional Director	:	Mr. Shivpal Singh, Assistant Director

O R D E R

1. This joint petition has been filed by the Petitioner Companies under Sections 230-232 of the Companies Act, 2013 (for brevity the Act) read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for seeking sanction of the Scheme of Arrangement between M/s. Nexion International Private Limited (hereinafter referred to as "Demerged Company"), M/s. Nexion Surfaces Private Limited (hereinafter referred to as "Resulting Company 1") and M/s. Simpolo Vitrified Private Limited (hereinafter referred to as "Resulting Company 2"") and their respective shareholders (hereinafter referred to as the "Scheme").

2. The Scheme *inter alia* provides for the demerger, transfer and vesting of the Demerged Undertaking (viz. Vitrified Tiles Business) from the Demerged Company into the Resulting Company No.1 on a *going concern* basis and the consequent issue of shares by the Resulting Company No. 2 to the shareholders of Demerged Company. The said

Scheme also provides for various other matters consequent and incidental thereto.

3. An Affidavit in support of the Company Petition has been sworn by Mr. Bharatbhai Thakarshibhai Aghara, Authorized Signatory of the Demerged Company, Mr. Mansukh Tribhovanbhai Kaila, Authorized Signatory of the Resulting Company No.1 and Mr. Bharatbhai Thakarshibhai Aghara, Authorized Signatory of the Resulting Company No.2 and the same are part of the Company Petition. The abovenamed Authorized Signatories for the respective Petitioner Companies have been authorized *vide* Board Resolutions dated 19.06.2022 passed by the respective Petitioner Companies.

4. From the records, it is seen that the first motion application was filed before this Tribunal, being CA (CAA) 52 of 2022, which sought dispensation of meetings of the Equity Shareholders of the Petitioner Companies, in view of the consent affidavits of the Equity Shareholders and sought directions for holding and convening the meetings of the Secured and Unsecured Creditors of the Demerged Company and Resulting Company No.2. Since there were no Secured Creditor in the Resulting Company No.1, Secured Creditors meeting was not required. The sole unsecured creditor is repaid, thus no meeting is required to be held for the unsecured creditors of Resulting

Company No.1. The aforesaid application was allowed vide order dated 21.12.2022, by issuing directions for notices and publications in newspapers, English daily 'Business Standard' and Gujarat daily 'Jai Hind' both in Ahmedabad editions. Directions were also issued for service of notice to the concerned Regulatory Authorities.

5. The directions issued by the aforesaid order were duly complied with by the Petitioner Companies and compliance affidavits were duly filed with the Tribunal by the Petitioner Companies on 01.02.2023. In compliance with the directions for convening the meetings, the separate meetings were duly convened on 09.02.2023 for the Secured and Unsecured Creditors of the Demerged Company and the Resulting Company No.2. The Chairman appointed for the said meetings has filed his reports on 24.02.2023 for the result of the said meetings along with affidavit dated 15.02.2023. The said reports confirm the approval to the proposed Scheme unanimously by the Secured Creditors of the Demerged Company and the Resulting Company as well as the Unsecured Creditors of the Demerged Company. In case of the Unsecured Creditors of the Resulting Company No.2, approval was granted by requisite majority of 99.84%.

6. The Petitioner Companies had filed second motion joint petition being CP (CAA) 9 of 2023 before this Tribunal

seeking sanction of the Scheme (e-filed on 23.02.2023 and physical copy thereof was filed on 24.02.2023) which was admitted vide order dated 10.03.2023. Directions were issued to publish notice of hearing of Petition in the newspapers, 'Business Standard' in English and 'Jai Hind' in Gujarati in Ahmedabad editions and to serve notice of hearing of the Petition to the statutory and regulatory authorities. The said directions were complied with and compliance affidavit has been filed for the same on 06.04.2023.

7. In response to the notice served upon the Regional Director (RD), the RD has filed common report on 09.05.2023, along with report from Registrar of Companies (RoC) dated 10.04.2023. Their observations are as follows:-

i. The Petitioner Company No.1 (Demerged Company) to comply with FEMA and RBI Guidelines as there are foreign shareholders in Petitioner Company No.1;

ii. The Petitioner Companies to undertake the compliance of Section 2(19AA) of the Income Tax Act, since this is a scheme of Demerger.

iii. There are no qualified remarks / observations made by the Auditors in their report on the accounts for the last three years of the Demerged Company and Resulting Company No.1. The auditors of the

Resulting Company No.2 had made qualified remarks in their report.

iv. To direct the petitioner companies to preserve its books of accounts, papers and records and shall not be disposed of without prior permission of Central Government as per provision of Section 239 of the Companies Act, 2013.

v. To direct the petitioner companies to ensure statutory compliance of all applicable laws and also on sanctioning of the present Scheme.

vi. Necessary Stamp Duty on transfer of property / assets, if any, is to be paid to the respective Authorities before implementation of the Scheme.

vii. To pay the amount of legal fees/ costs to the Central Government;

8. The Petitioner Companies have filed a common affidavit in reply dated 18.4.2023 on 20.04.2023 in response to observations made by Regional Director as under:-

i. The Petitioner Company 1 undertakes to comply with FEMA and RBI Guidelines, to the extent applicable.

ii. The Petitioner Companies also undertakes to comply with the provisions of Section 2(19AA) of the Income Tax Act, to the extent applicable.

iii. So far as the observation with regard to remarks qualifying the accounts made by the Auditor was concerned, it is submitted that the Regional Director

has merely reproduced the qualification of the Auditor and the response given by the Board of Directors of Resulting Company 2 to those qualification. The purported qualification by the Auditor would have no bearing on the sanction of the present Scheme of Arrangement. Even otherwise, none of the Petitioner Companies are going to be dissolved by the sanction of the present Scheme of Arrangement.

iv. The Petitioner Companies undertake to pay the requisite legal fees / cost to the Central Government as may be quantified by this Tribunal.

9. The Petitioner Companies *vide* their joint Affidavit dated 18.4.2023 in reply to the observations of the Registrar of Companies in the ROC Report dated 24.1.2023 states as follows:

i. With regard to observation contained in paragraph 14(1) and (2) of the Report of Registrar of Companies, it is submitted that the said representation is factual and therefore does not require any comment.

ii. With regard to observation contained in paragraph 14(3) of the Report of Registrar of Companies, the Petitioner Companies undertakes to preserve its books of accounts, papers and records and the same shall not be disposed of without prior permission of Central Government as per the provisions of Section 239 of the Companies Act, 2013.

iii. With regard to observation contained in paragraph 14(4) of the Report of Registrar of Companies, the Petitioner Companies undertake to comply with all the statutory compliance of all applicable Laws and the Petitioner Companies shall not be absolved from any of its Statutory liabilities (if any).

iv. With regard to observation contained in paragraph 14(5) of the Report of Registrar of Companies, the Petitioner Companies undertake to pay necessary Stamp Duty on transfer of property/Assets (if any) to the respective Authorities.

v. With regard to observation contained in paragraph 14(6) of the Report of Registrar of Companies, the Petitioner Companies undertakes to comply with the provisions of Section 232 (5) of the Companies Act, 2013 with respect to filing of the certified copy of order sanctioning the Scheme with the Registrar of Companies within 30 days from the date of passing order.

10. There are no other observations made by the Regional Director, North Western Region or the Registrar of Companies, Gujarat, Ministry of Corporate Affairs.

11. In response to the notice served upon the Income Tax Department, the Income Tax Department has submitted its report dated 03.04.2023 on 25.04.2023 stating that there

is no outstanding demand against the Demerged Company. Further, the Income Tax Department on 16.06.2023 filed a report dated 14.06.2023 stating that there is no outstanding demand against Resulting Company No.1. As far as the Resulting Company No.2 is concerned, there is an outstanding demand of Rs. 38,470/-. The Income Tax Department further stated that it reserves its rights to determine the tax implications of the demerger under the Scheme in accordance with provisions of the Income-tax Act, 1961.

12. At the time of hearing on 12.05.2023, Ms. Kinjal Trivedi, Advocate appearing for the Income Tax Department stated that they have filed their report and they have no objection to the approval of the Scheme.

13. During the course of hearing on 14.06.2023, Mr. Shivpal Singh, Assistant Director appearing for the Regional Director, stated that subject to the compliance of undertakings given by the Petitioner Companies, they have no objection to approval of the Scheme.

14. Since it is Scheme of Demerger, the report of the Official Liquidator is not required.

15. The Petitioner Companies have placed on record the Valuation Report dated 08.06.2022 obtained from Mr.

Niranjan Kumar, recommending the share Entitlement Ratio.

16. An affidavit sworn by Mr. Bharatbhai Thakarshibhai Aghara, Authorized Signatory of the Demerged Company, Mr. Mansukh Tribhovanbhai Kaila, Authorized Signatory of the Resulting Company 1 and Mr. Bharatbhai Thakarshibhai Aghara, Authorized Signatory of the Resulting Company 2, has been filed with the Tribunal stating that, no investigation proceedings are pending against Petitioner Companies under Section 210 to 227 of the Act and no winding up petition is pending against the Petitioner Companies.

17. In compliance with the proviso to sub-section (7) of Section 230 of the Act, the Petitioner Companies have placed on record the Certificates of their Statutory Auditors dated 08.06.2022, 07.06.2022 and 19.06.2022 respectively, confirming that the accounting treatment envisaged under the Scheme is in compliance with the applicable accounting standards notified by the Central Government under Section 133 of the Act.

18. The schedule of properties of the Demerged Undertaking is produced on record.

19. We have heard Mr. Ravi Pahwa, Ld. Counsel for the Petitioner Companies and have also gone through the records.

20. On the basis of above facts and submissions made by the Ld. Counsel and by considering the approval accorded by the shareholders and creditors of the Petitioner Companies to the proposed Scheme, and the no objection of the respective Regulatory and Statutory Authorities, it appears that the requirements of the provisions of Sections 230 to 232 are satisfied by the Petitioner Companies. It seems that the proposed Scheme of Arrangement is bona fide and in the interest of the shareholders and creditors. Therefore, petition is allowed and the Scheme of Arrangement between M/s. Nexion International Private Limited ("Demerged Company"), M/s. Nexion Surfaces Private Limited ("Resulting Company No.1") and M/s. Simpolo Vitrified Private Limited ("Resulting Company No. 2") is hereby sanctioned. It is declared that the said sanctioned Scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

21. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the Scheme will not come in the way of action being taken,

albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioner Companies.

22. While approving the Scheme as above, we further clarify that this order should not be construed as an order granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

23. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

24. The Scheme is sanctioned with the following directions:-

i. The Scheme of Arrangement as annexed herewith as "Annexure-A" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. The Demerged Undertaking shall, together with all its property, rights and powers be transferred without further act or deed to the Resulting Company 1 and

accordingly the same shall pursuant to Section 230-232 of the Act, stand transferred to and vest in the Resulting Company 1.

iii. Upon the Scheme becoming effective and in consideration of and subject to the provisions of this Scheme, securities shall be issued by Resulting Company 2 as follows, without any further application, act, deed, consent, acts, instrument or deed, issue and allot, on a proportionate basis to each shareholder of the Demerged Company whose name is recorded in the register of members as member of the Demerged Company as on the Record Date:

> *"874 (Eight Hundred and Seventy Four) equity shares of the Resulting Company 2 of INR 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of the Demerged Company of INR 10/- each fully paid up held by such shareholders".*

iv. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Demerged Undertaking shall stand transferred to and vested in the Resulting Company 1, without any further act or deed. The Resulting Company 1 shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and

benefits under the same shall be available to the Resulting Company 1.

v. All the liabilities and duties of the Demerged Undertaking be transferred, without further act or deed, to the Resulting Company 1 and accordingly the same shall pursuant to Sections 230-232 of the Act, be transferred to and become the liabilities and duties of the Resulting Company 1.

vi. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Demerged Company in respect of the Demerged Undertaking, shall stand transferred to and vested in the Resulting Company 1 and be in full force and effect in favour of the Resulting Company 1 and may be enforced by or against it as fully and effectually against the Resulting Company 1.

vii. All direct and indirect taxes paid or payable by the Demerged Company including advance taxes pertaining to the Demerged Undertaking including existing and future incentives, unavailed credits and exemptions, benefit of carried forward losses and other statutory benefits, to which shall be available to and vest in the Resulting Company 1. The tax liability of the Demerged Undertaking shall become liability of the Resulting Company 1 and any proceedings

against the Demerged Undertaking shall continue against the Resulting Company 1.

viii. All proceedings now pending by or against the Demerged Company in respect of Demerged Undertaking shall be continued by or against the Resulting Company 1.

ix. All employees in the service of the Demerged Company pertaining to the Demerged Undertaking shall be deemed to have become the employees and the staff of the Resulting Company 1 on the basis that their services shall be deemed to have been continuous and not having been interrupted by reasons of the said transfer and on the terms and conditions no less favourable than those on which they were / are engaged.

x. The Petitioner Companies are further directed to file certified copy of this order along with the copy of the Scheme (Annexure-A) with the concerned Registrar of Companies, electronically, *vide* e-form INC-28 within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. The Petitioner Companies are directed to lodge a certified copy of this Order and along with the Scheme, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay

requisite stamp duty payable, if any, within 60 days from the date of this Order.

xii. The legal fees and expenses of the office of the Regional Director is quantified at Rs.10,000/- in respect of the petitioner companies. The said fees to the Regional Director shall be paid by the Resulting Company No.1.

xiii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xiv. Any person aggrieved shall be at liberty to apply to the Hon'ble Tribunal in the above matter for any direction that may be necessary.

25. The Company Petition CP(CAA) No. 9 of 2023 connected with CA(CAA) No. 52 of 2022 are disposed of, in terms of above order.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

Sudha-Steno/ Rahul-LRA

Annexure "A"

"Annexure – I"

SCHEME OF ARRANGEMENT

BETWEEN

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NEXION INTERNATIONAL PRIVATE LIMITED
("DEMERGED COMPANY" OR "NEXION")

AND

NEXION SURFACES PRIVATE LIMITED
("RESULTING COMPANY 1" OR "NSPL")

AND

SIMPOLO VITRIFIED PRIVATE LIMITED
("RESULTING COMPANY 2" OR "SVPL")

AND

THEIR RESPECTIVE SHAREHOLDERS

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS
OF THE COMPANIES ACT, 2013

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

SCHEME OF ARRANGEMENT

BETWEEN

NEXION INTERNATIONAL PRIVATE LIMITED

AND

NEXION SURFACES PRIVATE LIMITED

AND

SIMPOLO VITRIFIED PRIVATE LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS

OF THE COMPANIES ACT, 2013

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I

PREAMBLE

This Scheme of Arrangement ("the Scheme" or "this Scheme" or the "Scheme of Arrangement" as defined hereinafter) provides for demerger of Vitrified Tiles Business / Demerged Undertaking of Nexion International Private Limited **("Demerged Company"** or **"NEXION")** into Nexion Surfaces Private Limited **("Resulting Company 1"** or **"NSPL")** pursuant to provisions of Sections 230 to 232 of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013. This Scheme also provides for various other matters consequential thereto or otherwise integrally connected therewith.

A. DESCRIPTION OF COMPANIES

i. Nexion International Private Limited (hereinafter referred to as **"NEXION"** or "the Demerged Company") means a company incorporated under the provisions of the Companies Act, 2013 under the Corporate Identification Number U26933GJ2014PTC081644 and having its registered office situated at Office no. 1104 and 1105, Shapath V, Opp Karnavati Club, S.G. Highway Ahmedabad, Gujarat - 380015. It is engaged into business of manufacturing and marketing of vitrified tiles, natural and artificial marbles and other ceramic products.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

ii. Nexion Surfaces Private Limited (hereinafter referred to as **"NSPL"** or **"the Resulting Company 1"**) means a company incorporated under the provisions of the Companies Act, 2013 under the Corporate Identification Number U26990GJ2022PTC130486 and having its registered office situated at Old Ghuntu Road, B/h. Silvenia Ceramic 8-A National Highway, Morbi, Rajkot, Gujurat - 363642. It is engaged in business of manufacturing and marketing of vitrified tiles, natural and artificial marbles and other ceramic products . NSPL is wholly owned subsidiary of SVPL.

iii. Simpolo Vitrified Private Limited (hereinafter referred to as **"SVPL"** or **"the Resulting Company 2"**) means a company incorporated under the provisions of the Companies Act, 1956 under the Corporate Identification Number U26914GJ2007PTC051766 and having its registered office situated at survey no. 606, Tal. Morbi Ghuntu. Gujarat – 363642. It is engaged in business of manufacturing and trading of vitrified tiles in both domestic and international markets. It also owns windmill unit at Chavda, Gujarat whose power is applied only for captive use. SVPL holds 100% shareholding of NSPL.

NSPL and SVPL hereinafter are collectively referred to as **"Resulting Companies"**.

B. RATIONALE OF THE SCHEME

- NEXION is engaged in manufacturing and marketing of vitrified tiles, natural and artificial marbles and other ceramic products.

- SVPL as well as NSPL are also engaged in similar business of manufacturing and trading of vitrified tiles.

- The proposed demerger of the Demerged Undertaking from the Demerged Company to the Resulting Companies pursuant to this Scheme is expected, inter alia, to result in:
  i. Consolidation of business which would attract investments;
  ii. Realisation of benefits of greater synergies between the businesses of the Demerged Company and Resulting Companies and use of the financial,

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

Nexion Surfaces Private Limited
Director

managerial, technical and marketing resources of each other towards maximizing stakeholder value;

iii. Synergy of operations will result in incremental benefits through sustained availability and better procurement terms of components, pooling of resources, thus leading to better utilisation and avoidance of duplication;

iv. Opportunities for employees of the Companies to grow in a wider field of business;

v. Improvement in competitive position and also achieving economies of scale including enhanced access to marketing networks/customers;

vi. Administrative and operational efficiencies because of similar business combined in a single entity.

The proposed Scheme is in the interest of the shareholders, creditors, employees, and other stakeholders in the Demerged Company and the Resulting Companies (as defined as ***"Parties"*** hereinafter).

C. Under the Scheme, there is no arrangement proposed to be entered into with the creditors, either secured and/or unsecured creditors of the Demerged Company and/or the Resulting Companies. No compromise is offered under this Scheme to any of the creditors of the Demerged Company and/or the Resulting Companies. The liability of the creditors of the Demerged Company and/or the Resulting Companies, under the Scheme, is neither being reduced nor being extinguished and liability of Demerged Undertaking shall be assumed and discharged by the Resulting Company 1 in its ordinary course of business.

D. PARTS OF THE SCHEME

This Scheme is presented pursuant to the provisions of Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 for demerger of Demerged Undertaking (as defined below) of NEXION into NSPL This Scheme also provides for various other matters consequential or otherwise integrally connected therewith.

This Scheme is divided into following parts:

- Part A – deals with Definitions and Share Capital;

Nexion Surfaces Private Limited Director

Simpolo Vitrified Private Limited Director

NEXION INTERNATIONAL PRIVATE LIMITED DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED DIRECTOR

Simpolo Vitrified Private Limited Director

Nexion Surfaces Private Limited Director

- Part B – deals with Demerger of the Demerged Undertaking of NEXION into NSPL and discharge of consideration in lieu thereof by SVPL, in compliance with Section 2(19AA) of the Income Tax Act; and
- Part C – deals with the General Terms and Conditions that would be applicable to the Scheme.

PART A
DEFINITIONS AND SHARE CAPITAL

1. DEFINITIONS

In this Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the following meaning:

1.1 **"Act" or "the Act"** means the Companies Act, 2013 and rules and regulations made thereunder, and includes any statutory re-enactment or amendments(s) thereto, from time to time.

1.2 **"Appointed Date"** means the opening of business hours on 01st April 2022 or such other date as may be fixed or approved by the National Company Law Tribunal or such other competent authority;

1.3 **"Applicable Law(s)"** means any statue, notification, bye laws, rules, regulations, guidelines, rule or common laws, policy, code, directives, ordinance, schemes, notices, orders or instructions law enacted or issued or sanctioned by any Appropriate Authority including any modification or re-enactment thereof for the time being in force;

1.4 **"Appropriate Authority"** means any applicable central, state or local government, legislative body, regulatory, administrative or statutory authority, agency or commission or department or public or judicial body or authority, including, but not limited to Competition Commission of India, Regional Director, Registrar of Companies, Reserve Bank of India and National Company Law Tribunal;

1.5 **"Board of Directors" or "Board"** means the respective Board of Directors of the Demerged Company and the Resulting Companies, or any committee

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

constituted by such Board of Directors for the purpose of this Scheme by the Demerged Company and the Resulting Companies;

1.6 **"Companies"** means together the Demerged Company, the Resulting Company 1 and the Resulting Company 2;

1.7 **"Demerged Company" or "NEXION"** means **Nexion International Private Limited,** a company incorporated under the provisions of the Companies Act, 2013 under the Corporate Identification Number U26933GJ2014PTC081644 and having its registered office situated at Office no. 1104 and 1105, Shapath V, Opp Karnavati Club, S.G. Highway Ahmedabad, Gujarat - 380015.

1.8 **"Demerged Undertaking"** means the business comprising of manufacturing and marketing of vitrified tiles of NEXION as identified by the Board, including all assets, contracts, licenses, permits, all rights, title or interest in property(ies) by virtue of any court order / decree, approvals, permissions, and all other rights, titles, interests, contracts, purchase orders, goodwill, consents, approvals or powers of every kind, nature and descriptions whatsoever, and shall be deemed to include:

a) all immovable properties (whether freehold, leasehold, leave and licensed, tenancies or otherwise) and all documents (including panchnamas, declarations, receipts) of title and interest in connection with the said immovable properties;

b) all assets, as are moveable in nature, whether tangible and intangible, in possession, or in reversion, present and contingent of whatsoever nature, including all furniture, fixtures, plant and machinery, servers, computers, installations, electrical equipment, tools, advances, deposits, sundry debtors, trade receivables, bills of exchange, inventory, other movable articles, past track records, experiences, credentials and all other interests or rights in or arising out of or relating to such activity or as identified / allocated for such activity, together with all the respective rights, powers, interests, charges, privileges, benefits;

c) all contracts, agreements, licenses, leases, linkages, memorandum of understandings, memorandum of agreements, arrangements, undertakings, whether written or otherwise, deeds, bonds, schemes, arrangements or other instruments of whatsoever nature;

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

d) all secured and unsecured debts, liabilities from past, present or future (including contingent liabilities), duties, guarantees (including bank guarantees), obligations and provisions pertaining or relating to the Demerged Undertaking;

e) all permissions, approvals, consents, subsidies, privileges, income tax benefits and exemptions, accumulated tax losses, unabsorbed depreciation, minimum alternate tax credits, indirect tax benefits and exemptions, all other rights, benefits and liabilities related thereto including licenses, powers and facilities of every kind, nature and description whatsoever, provisions and benefits of all agreements, contracts and arrangements and all other interests in connection with the Demerged Undertaking;

f) all licenses (including licenses granted by any government, statutory or regulatory bodies for the purpose of carrying on the business of the Demerged Undertaking or in connection therewith), approvals, authorizations, permissions including municipal permissions, consents, registrations including import registrations, certifications, no objection certificates, quotas including import quotas, rights, permits including import permits, exemptions, subsidies, tax deferrals, credits (including CENVAT Credits, sales tax credits, Good and Service Tax credits and income tax credits), privileges, advantages and all other rights and facilities of every kind, nature and description whatsoever pertaining or relating to the Demerged Undertaking;

g) all agreements, contracts, arrangements, understandings, engagements, deeds and instruments including lease/ license agreements, tenancy rights, equipment purchase agreements, master service agreements, loan license agreements, third party manufacturing agreements and other agreements with the customers, purchase and other agreements / contracts with the supplier / manufacturer of goods / service providers and all rights, title, interests, claims and benefits thereunder pertaining or relating to the Demerged Undertaking;

h) all employees of NEXION engaged in the activity of Demerged Undertaking that are identified by the Board of Directors; and

Nexion Surfaces Private Limited
Director

Simplo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simplo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

i) all records, files, papers, process information, computer programs, manuals, data, catalogues, quotations, sales and advertising materials, lists of present and former customers, customer credit information, customer pricing information, and other records, whether in physical form or electronic form in connection with or relating to the Demerged Undertaking.

Any question that may arise as to whether a specified asset or liability pertains or does not pertain to the Demerged Undertaking or whether it arises out of the activities or operations of the Demerged Undertaking shall be decided by mutual agreement between the Board of Directors of the Demerged Company and Resulting Companies.

1.9 **"Effective Date"** means the last of the dates on which the certified or authenticated copies of the orders of the National Company Law Tribunal sanctioning the Scheme are filed with the Registrar of Companies by the Companies. Any references in this Scheme to the "Upon the Scheme becoming effective" or "effectiveness of this Scheme" or "Scheme taking effect" shall mean the Effective Date.

1.10 **"Encumbrances"** includes, but not limited to, (i) mortgage, plegde, charge, assignment, hypothecation, security interest, preferential rights, trust arrangement, right to set-off, counterclaim or banker's lien, privilege, priority or other encumbrance of any kind having the effect of security, whether created directly or indirectly; (ii) any proxy, power of attorney, voting trust agreement, pre-emptive right, interest, option, right to acquire, right to first offer, refusal or voting, dividend or transfer restriction in favour of any person; (iii) any adverse claim or demand of any description whatsoever as to the title, possession or use; and (iv) any right pursuant to any existing agreement or commitment to give or create any lien (in manner set out in sub-clause (i) to (iii) above) and any entitlement to claim any such right;

1.11 **"Income Tax Act"** means Income tax Act 1961 and applicable rules in this regard;

1.12 **"Accounting Standards"** means the Accounting Standard notified under section 133 of the Act read with relevant applicable rules and the relevant provisions;

1.13 "INR" means Indian Rupee, the lawful currency of the Republic of India;

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

1.14 **"Permits"** means all consents, licenses, permits, certificates, permission, authorization, rights, clarifications, approvals, clearances, confirmations, declarations, waivers, exemptions, registrations, filings, whether governmental, statutory, regulatory or otherwise as required under Applicable Law;

1.15 **"Record Date"** means the date as may be decided by the Board of Directors of the Demerged Company and the Resulting Companies to determine the members / shareholders of the Demerged Company to whom equity shares of the Resulting Company 2 will be allotted according to the Share Entitlement Ratio determined by the Independent Valuers pursuant to Clause 9 of this Scheme;

1.16 **"Registrar of Companies"** means Registrar of Companies, Gujarat at Ahmedabad having jurisdiction over the Companies.

1.17 **"Remaining Undertaking"** means all the business, units, divisions, undertakings and activities (including but not limited to leasing of immovable properties), assets and liabilities of the Demerged Company other than the Demerged Undertaking as defined in Clause 1.8 hereof;

1.18 **"Resulting Companies"** means NSPL and SVPL, collectively

1.19 **"Tax Laws"** means Income Tax Act, Goods and Service Tax, Customs Act, 1962, Central Excise Act, 1944, Value Added Tax Act applicable to any state in which the Companies operates, Central Sales Tax Act, 1956, any other State Sales Tax / Value Added Tax laws, or Service Tax, or other applicable laws/ regulations dealing with taxes / duties / levies / cess.

1.20 **"this Scheme"** or **"the Scheme"** or **"Scheme of Arrangement"** means this Scheme of Arrangement in its present form, submitted to the Tribunal for sanction of this Scheme with such modification(s), if any, made as per Clause 17 of this Scheme.

1.21 **"The Tribunal" or "NCLT"** means the National Company Law Tribunal, Ahmedabad Bench or such other forum or appropriate authorities as may be vested with any of the powers to sanction the present Scheme under the Act.

1.22 **"the Resulting Company 1" or "NSPL"** means Nexion Surfaces Private Limited, a company incorporated under the provisions of the Companies Act, 2013 under the Corporate Identification Number U26990GJ2022PTC130486

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

and having its registered office situated Old Ghuntu Road, B/h. Silvenia Ceramic, 8-A National Highway, Morbi, Rajkot - 363642.

1.23 **"the Resulting Company 2" or "SVPL" means Simpolo Vitrified Private Limited,** a company incorporated under the provisions of the Companies Act, 1956 under the Corporate Identification Number U26914GJ2007PTC051766 and having its registered office situated at survey no. 606, Tal. Morbi Ghuntu, Gujarat – 363642.

2. In this Scheme, unless the context otherwise requires:

a) words denoting the singular shall include the plural and vice versa;

b) headings and bold typefaces are only for convenience and shall be ignored for the purpose of interpretation;

c) references to the word "include" or "including" shall be construed without limitation;

d) a reference to a clause, section or part is, unless indicated to the contrary, a reference to a clause, section or part of this Scheme;

e) unless otherwise defined, the reference to the word "days" shall mean calendar days;

f) reference to a document includes an amendment or supplement to, or replacement or novation of that document;

g) word(s) and expression(s) elsewhere defined in the Scheme shall have the meaning(s) respectively ascribed to them; and

h) all terms and words used but not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be, or any statutory modification or re-enactment thereof for the time being in force.

3. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out here in its present form or with any modification(s) approved or imposed or directed by the Tribunal or in terms of this Scheme shall take effect from the Appointed Date but shall be operative from the Effective Date.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

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4. **SHARE CAPITAL**

4.1 The share capital structure of the Demerged Company as on 31st March 2022 is as follows:

PARTICULARS	AMOUNT
Authorised Capital	
2,30,00,000 equity shares of Rs. 10/- each	23,00,00,000
TOTAL	**23,00,00,000**
Issued, Subscribed and Paid-up Capital	
2,22,61,578 equity shares of Rs. 10/- each fully paid up	22,26,15,780
TOTAL	**22,26,15,780**

After the above date and upto the date of the Scheme being approved by the Board of Directors of the Demerged Company, there has been no change in the issued, subscribed and paid-up share capital of the Demerged Company.

4.2 The share capital structure of the Resulting Company 1 as on 31st March 2022 is as follows:

PARTICULARS	AMOUNT
Authorised Capital	
1,50,000 equity shares of Rs. 10/- each	15,00,000
TOTAL	**15,00,000**
Issued, Subscribed and Paid-up Capital	
10,000 equity shares of Rs. 10/- each fully paid up	1,00,000
TOTAL	**1,00,000**

After the above date and upto the date of the Scheme being approved by the Board of Directors of the Resulting Company 1, there has been no change in the issued, subscribed and paid-up share capital of the Resulting Company 1.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

4.3 The share capital structure of the Resulting Company 2 as on 31st March 2022 is as follows:

PARTICULARS	AMOUNT
Authorised Capital	
1,50,00,000 equity shares of Rs. 10/- each	15,00,00,000
TOTAL	**15,00,00,000**
Issued, Subscribed and Paid-up Capital	
71,99,200 equity shares of Rs. 10/- each fully paid up	7,19,92,000
TOTAL	**7,19,92,000**

After the above date and upto the date of the Scheme being approved by the Board of Directors of the Resulting Company 2, there has been no change in the issued, subscribed and paid-up share capital of the Resulting Company 2.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

Nexion Surfaces Private Limited
Director

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PART B

DEMERGER OF DEMERGED UNDERTAKING OF NEXION INTO NSPL

5. TRANSFER AND VESTING OF THE DEMERGED UNDERTAKING

5.1 Upon coming into effect of this Scheme on the Effective Date with effect from the Appointed Date and subject to the provisions of this Scheme, the Demerged Undertaking of the Demerged Company as defined in Clause 1.8 hereof, shall, without any further act, instrument or deed, be transferred to and vested in or be deemed to be transferred to and vested in the Resulting Company 1, as a going concern, so as to vest in the Resulting Company 1 all the rights, title and interest of the Demerged Undertaking therein, pursuant to Sections 230 to 232 of the Act and any other relevant provisions of the Act and the order of the Tribunal sanctioning the Scheme, subject to subsisting charges and pledges, if any.

5.2 Without prejudice to the provisions of Clause 5.3, in respect of such of the assets and properties of the Demerged Undertaking, as are moveable in nature, capable of passing by manual delivery or by endorsement shall be so delivered or endorsed, as the case may be and shall, upon such delivery or endorsement, become the assets and properties of the Resulting Company 1, without requiring any deed or instrument or conveyance for the same.

5.3 In respect of movable assets other than those specified in Clause 5.2 above, including sundry debtors, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, deposits, if any, with Government, Semi-Government, local and other authorities and bodies, customers and other persons, the following methodology shall to the extent possible be followed:

The Resulting Company 1 shall give notice in such form as it may deem fit and proper to each person, debtor or depositee that pursuant to the Tribunal having sanctioned this Scheme, the said debt, loan, advance or deposit be paid to or made good to or held on account of the Resulting Company 1, as the person entitled thereto and that the right of the Demerged Company to recover or realize the same stands transferred to the Resulting Company 1 and that appropriate entries should be passed in their respective books to record the aforesaid changes.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Nexion Surfaces Private Limited
Director

5.4 In respect of such of the assets and properties forming part of the Demerged Undertaking which are immovable in nature, whether freehold or leasehold, and any documents of title, rights, agreements to sell/agreements of sale and easements in relation thereto, same shall stand transferred to and be vested in the Resulting Company 1 with effect from the Appointed Date, without any act or deed done by the Demerged Company or the Resulting Company 1, and without any approval or acknowledgement of any third party. With effect from the Appointed Date, the Resulting Company 1 shall be entitled to exercise all rights and privileges and be liable to pay all taxes and charges and fulfil all obligations, in relation to or applicable to such immovable properties. The mutation/substitution of the title to such immovable properties shall be made and duly recorded in the name of the Resulting Company 1 by the appropriate authorities pursuant to the sanction of the Scheme by the NCLT and in accordance with the terms hereof. the Demerged Company shall take all steps as may be necessary to ensure that lawful, peaceful and unencumbered possession, right, title, interest of its immovable property is given to the Resulting Company 1.

5.5 Notwithstanding anything contained in this Scheme, with respect to the immovable properties comprised in the Demerged Undertaking in the nature of land and buildings situated in India, whether owned or leased, for the purpose of, inter alia, payment of stamp duty, registration fees or other similar taxes or fees and vesting in the Resulting Company 1, if the Resulting Company 1 so decides, the Demerged Company and the Resulting Company 1, whether before or after the Effective Date, may execute and register or cause to be executed and registered, separate deeds of conveyance or deeds of assignment of lease, as the case may be, in favour of the Resulting Company 1 in respect of such immovable properties. Each of the immovable properties, only for the purposes of the payment of stamp duty, registration fees or other similar taxes or fees (if required under applicable law), shall be deemed to be conveyed at a value determined by the relevant authorities in accordance with the applicable circle rates. The transfer of such immovable properties shall form an integral part of this Scheme.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
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Nexion Surfaces Private Limited
Director

5.6 All permits, no objection certificates, contracts, permissions, approvals, consents, rights, entitlements, past track records, experiences, credentials, licenses, including those relating to trademarks, tenancies, patents, copyrights, privileges, powers, facilities of every kind and description of whatsoever nature in relation to the Demerged Undertaking to which the Demerged Company is a party or to the benefit of which the Demerged Company may be eligible and which are subsisting or having effect on the Effective Date, shall stand transferred to and vested in the Resulting Company 1 without any further act or deed done by the Demerged Company and the Resulting Company 1 and shall be appropriately mutated by the appropriate authority concerned therewith in favor of the Resulting Company 1 upon the vesting and transfer of the Demerged Undertaking pursuant to this Scheme, and shall remain in full force, operative and effectual for the benefit of the Resulting Company 1, and may be enforced by the Resulting Company 1 as fully and effectually as if, instead of the Demerged Company, the Resulting Company 1 had been the original party or beneficiary or obligee thereto.

5.7 Upon coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of this Scheme, all debts, liabilities from past, present or future (including contingent liabilities), duties and obligations of the Demerged Company relating to the Demerged Undertaking, shall pursuant to the order of the Tribunal as may be applicable under Section 230 and other applicable provisions of the Act, without any further act or deed, be transferred to and vested in or deemed to be transferred to and vested in the Resulting Company 1, so as to become as from the Appointed Date, the debts, liabilities, contingent liabilities, duties and obligations of the Resulting Company 1 on the same terms and conditions as were applicable to the Demerged Company. Any contingent liabilities (in relation to direct tax, goods & service taxes, sales tax, VAT, excise duty, service tax, custom duty or any other liability) arising on account of the Demerged Undertaking which relates to the period prior to the Appointed Date but arises at any time after the Appointed Date shall be entirely borne by the Resulting Company 1. Further, it is clarified that it shall not be necessary to obtain the consent of any third party or other person who is a party

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Director

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Nexion Surfaces Private Limited
Director

to any contract or arrangement by virtue of which such debts, liabilities and obligations have arisen in order to give effect to the provisions of this sub-clause.

5.8 The transfer and vesting as aforesaid of the debts / liabilities shall be subject to the existing charges / hypothecation / mortgages, if any, as may be subsisting and created over or in respect of the said assets or any part thereof, provided however, any reference in any security documents or arrangements with respect to Demerged Undertaking to which the Demerged Company is a party wherein the assets of the Demerged Company have been or are offered or agreed to be offered as security for any financial assistance or obligations shall be construed as reference only to those assets pertaining to the Demerged Undertaking and vested in the Resulting Company 1 by virtue of this Scheme to the end and intent that the charges shall not extend or deemed to extend to any other assets, if any of the Resulting Company 1 and shall not extend to remaining assets of the Demerged Company.

Provided that if any of the assets comprised in the Demerged Undertaking which are being transferred to the Resulting Company 1 pursuant to this Scheme have not been encumbered in respect of the transferred liabilities, such assets shall remain unencumbered, and the existing encumbrance referred to above shall not be extended to and shall not operate over such assets.

5.9 Without prejudice to the aforesaid, it is clarified that if any assets or contracts, deeds, bonds, agreements, schemes, arrangements or other instruments of whatever nature in relation to the Demerged Undertaking which the Demerged Company owns or to which the Demerged Company is a party to, cannot be transferred to the Resulting Company 1 for any reason whatsoever, the Demerged Company shall hold such assets, contracts, deeds, bonds, agreements, schemes, arrangements or other instruments of whatever nature in trust for the benefit of the Resulting Company 1, insofar as it is permissible so to do, till such time as the transfer is affected.

5.10 Upon this Scheme coming into effect and with effect from the Appointed Date, to such extent that any portion or component of the Demerged Undertaking is not effectively transferred in its entirety to the Resulting Company 1 for any reason whatsoever, the Demerged Company shall, or shall cause to, effectively transfer any such portion or component of the Demerged Undertaking

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Director

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Nexion Surfaces Private Limited
Director

remaining with the Demerged Company after the Appointed Date, to the Resulting Company 1 without any further act, deed, matter or thing; it being clarified that rights and liabilities pertaining to such portion or component of the Demerged Undertaking shall accrue to, or be borne by, the Resulting Company 1 with effect from the Appointed Date. To the extent that any portion or component of the business of the Demerged Company not constituting part of the Demerged Undertaking, is transferred to the Resulting Company 1, the Resulting Company 1 shall or shall procure the re-transfer of such portion or component not constituting part of the Demerged Undertaking to the Demerged Company; it being clarified that rights and liabilities pertaining to such portion or component of such remaining business (i.e. other than the Demerged Undertaking) shall accrue to, or be borne by, the Demerged Company.

6. STAFF, WORKMEN AND EMPLOYEES

6.1 Upon the Scheme becoming effective, all staff, workmen and employees of the Demerged Company relating to the Demerged Undertaking and in service on the Effective Date shall be deemed to have become staff, workmen and employees of the Resulting Company 1 on such date without any break or interruption in their service and on the terms and conditions of their employment not being less favourable than those subsisting with reference to the Demerged Company as on the said date.

6.2 The Scheme further provides that the accumulated balances, if any, standing to the credit of the employees of the Demerged Undertaking in the existing Provident Fund, Employee State Insurance Fund, Gratuity Fund and Superannuation Fund, of which they are members, will be transferred to such Provident Fund, Gratuity Fund and Superannuation Fund nominated by the Resulting Company 1 and/or such new funds to be established and caused to be recognized by the concerned authorities by the Resulting Company 1. Pending the transfer as aforesaid, the Provident Fund, Gratuity Fund and Superannuation Fund dues to the said employees of the Demerged Undertaking would be continued to be deposited in the existing Provident, Gratuity and Superannuation Funds respectively. This shall be binding on the Managers of such funds, if any.

Nexion Surfaces Private Limited
Director

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Director

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DIRECTOR

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Director

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Nexion Surfaces Private Limited
Director

6.3 It is clarified that the services of the staff, workmen and employees of the Demerged Undertaking will be treated as having been continuous for the purpose of the said Fund or Funds or for any other benefits which an employee is entitled / eligible for presently or in future.

7. LEGAL PROCEEDINGS

7.1 If any suit, appeal or other proceeding of whatever nature by or against the Demerged Company and relating to the Demerged Undertaking is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of the arrangement or by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against the Resulting Company 1 in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Demerged Company as if this Scheme had not been made. For this purpose, in view of the transfer and vesting of the Demerged Undertaking pursuant to this Scheme, the Demerged Company shall take all such steps in the proceedings before the appropriate authority to replace the Demerged Company with the Resulting Company 1.

7.2 On and from the Effective Date, the Resulting Company 1 shall be entitled to initiate any legal proceedings in relation to the Demerged Undertaking.

7.3 In the event of any difference or difficulty in determining whether any specific legal or other proceeding related to the Demerged Undertaking or not, a certificate jointly issued by the Board of Directors of the Demerged Company and the Resulting Company 1 as to whether such proceeding relates to the Demerged Undertaking or not, shall be conclusive evidence of the matter.

7.4 Notwithstanding anything contained above, in the event any time after the Effective Date, if the Demerged Company in relation to the Demerged Undertaking, is in receipt of any demand, claim, notice and/ or impleaded as a party in any of the proceedings before appropriate authority, the Demerged Company, in view of the transfer and vesting of the Demerged Undertaking pursuant to this Scheme, shall take all such steps in the proceedings before the appropriate authority to replace the Demerged Company with the Resulting Company 1. However, if the Demerged Company is unable to get the Resulting

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Director

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Nexion Surfaces Private Limited
Director

Company 1 replaced in such proceedings, the Demerged Company shall defend the same or deal with such demand in accordance with the advice of the Resulting Company 1 and at the cost of the Resulting Company 1 and the latter shall reimburse and indemnify the Demerged Company against all liabilities and obligations incurred by or against the Demerged Company in respect thereof.

8. CONTRACTS, DEEDS, ETC.

Subject to other provisions of the Scheme, all contracts, including contracts for tenancies and licenses, deeds, bonds, insurance policies, agreements, customers and other instruments of whatsoever nature relating to the Demerged Undertaking to which the Demerged Company is a party, or the benefit to which the Demerged Company may be eligible as on Appointed Date and is subsisting or operative immediately on or before the Effective Date (including past track records, experiences, credentials), shall be in full force and effect against or in favour of the Resulting Company 1 and may be enforced as fully and effectively as if instead of the Demerged Company, the Resulting Company 1 had been a party or beneficiary thereto. The Resulting Company 1 shall enter into and / or issue and / or execute deeds, in writings or confirmation or enter into any tripartite agreement, assignment deeds, confirmations or novation agreements to which the Demerged Company will, if necessary, also be a party in order to give formal effect to the provisions of this Scheme, if so required or becomes necessary. Further, the Resulting Company 1 shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of the Demerged Company and to implement or carry out all formalities required on the part of the Demerged Company to give effect to the provisions of this Scheme.

9. CONSIDERATION

9.1 Upon the Scheme becoming effective and in consideration of and subject to the provisions of this Scheme, securities shall be issued by Resulting Company 2 as follows, without any further application, act, deed, consent, acts, instrument or deed, issue and allot, on a proportionate basis to each shareholder of the

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

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Simpolo Vitrified Private Limited
Director

Nexion Surfaces Private Limited
Director

Demerged Company whose name is recorded in the register of members as member of the Demerged Company as on the Record Date:

"874 (Eight Hundred and Seventy Four) equity shares of the Resulting Company 2 of INR 10/- each fully paid up for every 10,000 (Ten Thousand) equity shares of the Demerged Company of INR 10/- each fully paid up held by such shareholders"

9.2 In the event that the Demerged Company / the Resulting Companies restructures its equity share capital by way of share split/consolidation/issue of bonus shares during the pendency of the Scheme, the Share Entitlement Ratio shall be adjusted accordingly to take into account the effect of any such corporate actions.

9.3 Shares to be issued to the members of the Demerged Company in the Resulting Company 2 pursuant to Clause 9.1 above shall be subject to the Memorandum and Articles of Association of the Resulting Company 2 and shall rank *pari passu* in all respects, including dividend, with the existing shares of the Resulting Company 2.

9.4 In case any member's holding in the Demerged Company is such that the member becomes entitled to a fraction of a share of the Resulting Company 2, the Resulting Company 2 shall round of such fraction to the nearest integer and accordingly issue shares.

9.5 If necessary, the Resulting Company 2 shall before allotment of the equity shares in term of the Scheme, increase its authorized share capital by such amount as may be necessary to satisfy its obligation under the provisions of the Scheme in compliance with the applicable provisions of the Act and the Rules thereunder.

9.6 The Resulting Company 2 shall, if and to the extent required, apply for and obtain any approvals from the relevant regulatory authorities for the issue and allotment of shares as per Clause 9.1 above.

9.7 The approval of this Scheme by the shareholders of the Resulting Company 2 shall be deemed to be the due compliance of the provisions of the Companies Act, 2013 and other relevant and applicable provisions of the Act for the issue and allotment of equity shares by the Resulting Company 2 to the shareholders of the Demerged Company, as provided in this Scheme.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

Nexion Surfaces Private Limited
Director

9.8 The issue and allotment of the shares by the Resulting Company 2 as provided in this Scheme is an integral part hereof and shall be deemed to have been carried out without any further act or deed by the Resulting Company 2 as if the procedure laid down under the relevant applicable provisions of the Act were duly complied with.

10. ACCOUNTING TREATMENT IN THE BOOKS OF THE DEMERGED COMPANY

Upon the Scheme coming into effect, the Demerged Company shall account for the Scheme in its books of account in accordance with the accounting standards prescribed under Section 133 of the Act in the following manner:

10.1 Reduce the assets and liabilities of the Demerged Undertaking transferred and vested in the Resulting Company 1 pursuant to this Scheme at their respective carrying amounts.

10.2 The carrying amount of inter-corporate balances including Loans, advances, amount receivable or payable inter-se between the Demerged Company and the Resulting Company 1 pertaining to Demerged Undertaking pursuant to this Scheme, if any, appearing in the books shall stand cancelled, and there shall be no further obligations / outstanding rights in that behalf.

10.3 The difference between the carrying amounts of assets and carrying amounts of liabilities of the Demerged Undertaking demerged from the Demerged Company pursuant to this Scheme shall be adjusted against reserves.

10.4 Notwithstanding the above accounting treatment, the Board of Directors of the Demerged Company are authorized to account for any of these transactions / balances in any manner whatsoever, as may be deemed fit, in accordance with applicable Accounting Standards notified under the Act and read with General Circular 15/2013 dated 13 September 2013 of the Ministry of Corporate Affairs in respect of Section 133 of the Act and generally accepted accounting principles adopted in India.

11. ACCOUNTING TREATMENT IN THE BOOKS OF THE RESULTING COMPANIES

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED
DIRECTOR

Simpolo Vitrified Private Limited
Director

Nexion Surfaces Private Limited
Director

11.1 **RESULTING COMPANY 2**

Upon this scheme coming into effect, Resulting Company 2 shall account for the Scheme in its books of account, as on the appointed date, in the following manner:

a) Resulting Company 2 shall credit its share capital account with the aggregate face value of the equity shares issued pursuant to Clause 9.1 above;

b) The face value of share capital recorded above shall be recorded as debit in investments in subsidiary i.e. Resulting Company 1.

11.2 **RESULTING COMPANY 1**

Upon this Scheme coming into effect, Resulting Company 1 shall account for the Scheme in its books of account, as on the appointed date, in the following manner:

a) The Resulting Company 1 shall record the assets, liabilities and reserves of the Demerged Undertaking vested in it pursuant to this Scheme at the respective book values as appearing in the books of the Demerged Company as on the Appointed Date.

b) The identity of the reserves of the Demerged Undertaking in the books of Demerged Company, shall be preserved and they shall appear in the financial statements of the Resulting Company 1 in the same form and manner in which they appeared in the financial statements of the Demerged Company

c) Resulting Company 1 shall record the face value of equity shares issued by Resulting Company 2 as deemed equity contribution.

d) The difference between the Net Assets (i.e., aggregate of the book value of all assets over liabilities) & Reserves transferred from the Demerged Company and the deemed equity contribution recorded as per Clause 11.2(c) above shall be accounted based on the accounting principles prescribed under Ind AS – 103, i.e. shall be transferred to the Capital Reserve.

e) Notwithstanding the above accounting treatment, the Board of Directors of the Resulting Company 1 are authorized to account for any of these

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Director

Simpolo Vitrified Private Limited
Director

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DIRECTOR

Simpolo Vitrified Private Limited
DIRECTOR

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Nexion Surfaces Private Limited
Director

transactions / balances in any manner whatsoever, as may be deemed fit, in accordance with applicable Accounting Standards notified under the Act and read with General Circular 15/2013 dated 13 September 2013 of the Ministry of Corporate Affairs in respect of Section 133 of the Act and generally accepted accounting principles adopted in India.

12. TAX ASPECTS

12.1 Upon the Scheme becoming effective, the Demerged Company and the Resulting Company 1 shall have the right to revise their respective financial statements and returns along with prescribed forms, filings and annexures under the direct and indirect Tax Laws in India and to claim refunds and/or credit for taxes paid (including tax deducted at source, advance taxes, etc.) and for matters incidental thereto, if required to give effect to the provisions of the Scheme.

12.2 Any refunds or credits, under the direct or indirect Tax Laws or other applicable laws/ regulations dealing with taxes/ duties/ levies due to the Demerged Company relating to Demerged Undertaking consequent to the assessment made on the Demerged Company (including any refund for which no credit is taken in the accounts of the Demerged Company) as on the date immediately preceding the Appointed Date shall also belong to and be received by the Resulting Company 1 upon the Scheme becoming effective.

12.3 If the Demerged Company is entitled to any unutilized tax credits and losses (including unabsorbed depreciation), any other deductions and benefits or concessions relating to the Demerged Undertaking under any Tax Laws or applicable law, the Resulting Company 1 shall be entitled, as an integral part of the Scheme, to claim such benefits or incentives or unutilized credits or deductions and set off and carry forward the unabsorbed losses and depreciation as the case may be without any specific approval and permission.

12.4 The tax payments (including but not limited to income tax, goods & service tax, etc.) whether by way of tax deducted at source, advance tax or otherwise howsoever, by the Demerged Company relating to Demerged Undertaking after the Appointed Date, shall be deemed to be paid by the Resulting Company 1 and shall, in all proceedings, be dealt with accordingly.

Nexion Surfaces Private Limited
Director

Simpolo Vitrified Private Limited
Director

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DIRECTOR

Simpolo Vitrified Private Limit
Direct

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DIRECTOR

Nexion Surfaces Private Limited
Director

12.5 Further, any tax deducted at source by the Demerged Company with respect to Demerged Undertaking on transactions with the Resulting Company 1, if any (from Appointed Date to Effective Date) shall be deemed to be advance tax paid by the Resulting Company 1 and shall, in all proceedings, be dealt with accordingly.

12.6 Upon the Scheme coming into effect, any obligation of tax at source on any payment made by or to be made by the Demerged Company relating to Demerged Undertaking shall be made or deemed to have been made and duly complied with by the Resulting Company 1.

12.7 Any taxes paid by the Demerged Company or taxes deducted by third parties, in relation to the activities forming part of the Demerged Undertaking and as identified by the Board of Directors of the Companies, the Resulting Company 1 shall be entitled to claim credit of such taxes paid and the Demerged Company will not make any claim for credit of these taxes.

12.8 In accordance with relevant central or state legislation dealing with indirect taxes, as are prevalent on the Effective Date, the unutilized credit relating to indirect taxes paid on inputs / capital goods lying to the account of the Demerged Undertaking, shall be permitted to be transferred to the credit of the Resulting Company 1, as if such unutilized credits were lying to the account of the Resulting Company 1. The Resulting Company 1 shall accordingly be entitled to set off all such credits.

12.9 In relation to demerger of Demerged Undertaking, the Scheme has been drawn up to comply with the conditions relating to "Demerger" as specified under Section 2(19AA) of the Income-tax Act, 1961. If any terms or provisions of the Scheme is/are inconsistent with the provisions of Section 2(19AA) of the Income-tax Act, 1961, the provisions of Section 2(19AA) of the Income-tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent necessary to comply with Section 2(19AA) of the Income-tax Act, 1961; such modification to not affect other parts of the Scheme.

13. CONDUCT OF BUSINESS UNTIL AND POST EFFECTIVE DATE

13.1 With effect from the Appointed Date and up to and including the Effective Date,

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Director

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Simpolo Vitrified Private Limited
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Nexion Surfaces Private Limited
Director

i) The Demerged Company shall carry on the business and activities of the Demerged Undertaking in the ordinary course of business with reasonable diligence and business prudence and shall not venture into/expand any new businesses, alienate, charge, mortgage, encumber or otherwise deal with the assets or any part thereof except in the ordinary course of business without the prior consent of the Resulting Company 1. The phrase "ordinary course of business" shall mean the ordinary course of business consistent with past customs and practices, provided that a series of related transactions which taken together which is not in the ordinary course of business shall not be considered as ordinary course of business;

ii) The Resulting Company 1 shall be entitled, pending sanction of the Scheme, to apply to various government or regulatory agencies, departments or authorities concerned as necessary under law for such consents, approvals, licenses and sanctions, or renewal thereof, which is required to carry on the business of the Demerged Undertaking;

13.2 All cheques and negotiable instruments, payment orders received or presented for encashment which are in the name of the Demerged Company, in relation to or in connection with the Demerged Undertaking, after the Effective Date shall be accepted by the bankers of the Resulting Company 1 and credited to the account of the Resulting Company 1, if presented by the Resulting Company 1.

13.3 With effect from the Appointed Date to until Effective Date, all incomes, profits, costs, charges, expenses and taxes accruing to the Demerged Company but relating to the Demerged Undertaking shall for all purposes, be treated as the income, profits, costs, charges, expenses and taxes or losses, as the case may be, of the Resulting Company 1

14. SAVING OF CONCLUDED TRANSACTIONS

The transfer of and vesting of property and liabilities and the continuance of proceedings by or against the Resulting Company 1 shall not affect any transaction or proceedings already concluded by the Demerged Company on or after the Appointed Date to the end and intent that the Resulting Company 1 accepts and adopts all acts, deeds and things done and executed by the

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Director

Demerged Company in regard thereto as done and executed by the Resulting Company 1 on behalf of itself.

15. REMAINING UNDERTAKING

15.1 The Remaining Undertaking and all the assets, liabilities and obligations pertaining thereto shall continue to belong to and be vested in and be continued to be owned and managed by the Demerged Company, subject to the provisions of the Scheme.

15.2 All legal, direct tax or other proceedings (other than covered in Clause 7 above) by or against the Demerged Company under any statute, whether on the Appointed Date or which may be instituted in the future, whether or not in respect of any matter arising before the Effective Date shall be continued and enforced by or against the Demerged Company. The Resulting Company 1 shall in no event be responsible or liable in relation to any such proceedings.

15.3 With effect from the Appointed Date and up to and including the Effective Date:

a) The Demerged Company shall carry on and shall be deemed to have been carrying on all business and activities relating to the Remaining Undertaking for and on its own behalf; and

b) all profits or income accruing or arising to the Demerged Company, or all costs, charges, expenses or losses arising or incurred by the Demerged Company (including the effect of taxes, if any, thereon), relating to the Remaining Undertaking shall, for all purposes, be treated as profits, income, costs, charges, expenses or losses, as the case may be, of the Demerged Company.

PART C

GENERAL TERMS AND CONDITIONS

16. APPLICATIONS TO THE TRIBUNAL

Companies with all reasonable dispatch, shall make necessary applications / petitions before the Tribunal for the sanction of this Scheme under Sections 230 to 232 read with other applicable provisions of the Act.

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Director

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Director

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DIRECTOR

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Simpolo Vitrified Private Limited
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Nexion Surfaces Private Limited
Director

17. MODIFICATIONS / AMENDMENTS TO THE SCHEME

Board of Directors may make and/or consent to any modifications/amendments to this Scheme or to any conditions or limitations that the Tribunal or any other authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate. Further, Board of Directors shall also be authorised to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith. The power of the Board to modify / amend the Scheme shall be subject to the approval of the Tribunal.

18. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS

The Scheme is conditional upon and subject to:

18.1 Approval of the Scheme by the requisite majority of the respective members and creditors of the Companies as may be directed by the Tribunal;

18.2 Sanctions and orders under the provisions of the Act being obtained by the Companies from the Tribunal;

18.3 Certified copies of the orders of the Tribunal, sanctioning the Scheme being filed with the Registrar of Companies;

18.4 Approvals, if any from any governmental or regulatory authority, or contracting party or from such other authorities, as the Board of Directors may consider relevant, to ensure that business of the Demerged Undertaking subsequent to the transfer to the Resulting Company 1, could be carried on in an effective manner; and

18.5 All other sanctions and approvals as may be required by law in respect of this Scheme being obtained.

19. EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in Clause 18 above not being obtained and / or the Scheme not being sanctioned by the Tribunal or such other competent authority as aforesaid, this Scheme shall stand

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DIRECTOR

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Director
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Simpolo Vitrified Private Limited
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Nexion Surfaces Private Limited
Director

revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and / or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

If any provisions of this Scheme is held invalid or ruled illegal or unenforceable under law by any court of competent jurisdiction, then it is the intention of the Companies that such provision shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such provision shall cause this Scheme to become materially adverse to any Company, in which case the Companies shall attempt to bring about a modification in the Scheme subject to the approval of the Tribunal, as will best preserve the benefits and obligations contemplated under the Scheme.

At any time prior to the Effective Date, the Board of Directors of both the Companies jointly shall be entitled to revoke, cancel and / or withdraw the Scheme from the Tribunal if the Board of Directors are of the view that the coming into effect of the Scheme could have adverse implications for the Companies.

20. COSTS

All costs, charges, taxes including duties, levies (including stamp duty) and all other expenses, if any, arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto, shall be borne by the Demerged Company and Resulting Companies in the proportion as may be mutually decided by the board of directors of Demerged Company and Resulting Companies.

21. PROPERTY IN TRUST

Notwithstanding anything contained in this scheme, on or after Effective Date, until any property, asset, license, approval, permission, contract, agreement and rights and benefits arising therefrom, receipts, receivables and any other entitlements pertaining to the Demerged Undertaking are transferred, vested, recorded effected and/ or perfected, in the records of any Appropriate Authority,

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Nexion Surfaces Private Limited
Director

regulatory bodies or otherwise, in favour of Resulting Company 1, the Resulting Company 1 are entitled to the same and are deemed to be authorized to enjoy the property, asset or the rights and benefits arising from the license asset approval, permission, contract or agreement, receipts and receivables and any other entitlements that the Demerged Company was entitled to, as if it were the owner of the property or asset or as if it were the original party to the license, approval, permission, contract or agreement and the original beneficiary of the receipts and receivables and other entitlements. It is clarified that till entry is made in the records of the Appropriate Authority and till such time as may be mutually agreed by the Demerged Company and the Resulting Company 1, the Demerged Company will continue to hold the property and/or the asset, license, permission, approval, contract or agreement and rights and benefits arising therefrom, receipts, receivables and any other entitlements, as may be, in trust for and on behalf of Resulting Company 1.

Nexion Surfaces Private Limited

Director

Simpolo Vitrified Private Limited

Director

NEXION INTERNATIONAL PRIVATE LIMITED

DIRECTOR

NEXION INTERNATIONAL PRIVATE LIMITED

DIRECTOR

Simpolo Vitrified Private Limited

Director

Nexion Surfaces Private Limited

Annexure "B"

Nexion
ITALIAN STYLE THAT INSPIRES

Sur. No. 171-P, Unchi Mandal,
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Morbi - 363 642. Gujarat, India.
Tel.:+91-2822-293 722 / 293 822
Email : info@nexiontiles.com

www.nexiontiles.com

C.P. (CAA) No. 9/NCLT/AHM/2023
Connected with
CA (CAA) NO. 52/NCLT/AHM/2022

SCHEDULE OF ASSETS

Name of the Demerged Company	Nexion International Private Limited
Corporate Identification Number (CIN)	U26933GJ2014PTC081644
Registered Office	Office No. 1104 and 1105, Shapath V, Opp. Karnavati Club, S.G. Highway, Ahmedabad, Gujarat – 380015
Permanent Account Number (PAN)	AAVCS2567C
Tax Deduction & Collection Account Number (TAN)	RKTS11042D
GST Registration Number	24AAVCS2567C1Z5
Other investments	NIL
Electric Connections	Paschim Gujarat Vij Company Ltd Consumer No: 33090 Meter No: GJ6617A

List of Assets of the Demerged Company (i.e., Nexion International Private Limited) as on 14th June 2023 to be transferred to the Resulting Company 1 (i.e., Nexion Surfaces Private Limited), pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

Annexure 1 – Details of immovable properties

Sr. No.	Nature of Property	City	Location Address	Khasra No. / Survey No.	Area (in Acres)
1	Land	Morbi	Morbi Halwad Highway	171/1/3/P2 & 171/2	6.218
2	Land	Morbi	Morbi Halwad Highway	171/1/2/P2	5.569
3	Land	Morbi	Morbi Halwad Highway	171/1/1/P2	5.825
4	Land	Morbi	Morbi Halwad Highway	171/1/1 & 2 & 3 P 1	1.963
5	Land	Morbi	Morbi Halwad Highway	41/3	6.000

For Nexion International Private Limited
Authorised Signatory

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6	Shed Construction	Morbi	Morbi Halwad Highway	171/1/2/2, 171/1/1 PAIKI 2 171/1/3/2 171/1/1&2&3 P1	10.951
7	New Shed Construction	Morbi	Morbi Halwad Highway	171/1/2/2, 171/1/1 PAIKI 2 171/1/3/2 171/1/1&2&3 P1	1.833
8	Office Building	Morbi	Morbi Halwad Highway	171/1/2/2, 171/1/1 PAIKI 2 171/1/3/2 171/1/1&2&3 P1	0.340
9	Labor Quarter	Morbi	Morbi Halwad Highway	171/1/2/2, 171/1/1 PAIKI 2 171/1/3/2 171/1/1&2&3 P1	1.729
10	Land	Morbi	Morbi Halwad Highway	174/1/1/1/2	2.193
11	Land	Morbi	Morbi Halwad Highway	174/1/1/2	2.661
12	New Warehouse Shed Construction	Morbi	Morbi Halwad Highway	174/1/1/2	1.761

Annexure 2 – Details of movable properties

Table A – Details of Plant and Machineries

Sr. No.	Nature of Property	City	Location Address
1	Plant & Machineries	Morbi	Morbi Halwad Highway
2	Plant & Machineries*	Morbi	Morbi Halwad Highway

*The Demerged Company has made advance payment and the assets are to be delivered as it is in Transit Reference No. 15/23 dtd.10-02-2023 & 2023/0011 dtd.21-04-2023.

Table B – Details of other movable assets

Sr. No.	Nature of Property	City	Location Address
1	Lab Equipment	Morbi	Morbi Halwad Highway
2	Solar Equipment	Morbi	Morbi Halwad Highway
3	Factory Equipment	Morbi	Morbi Halwad Highway

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4	Office Equipment	Ahmedabad	1104/05, Shapath V, S.G. Road Ahmedabad -380015
5	Office Equipment	Bangalore	38th A Cross, 11th Main Road, 4th T Block, Jayanagar, Bangalore -560041
6	Office Equipment	Delhi	702, Commercial Complex, Plot No. A-4, District Centre, Saket, New Delhi
7	Office Equipment	Mumbai	306, Dev Plaza, S V Road, Opp. Andheri Fire Station, Andheri (W), Mumbai-400058
8	Office Equipment	Morbi	Morbi Halwad Highway
9	Office Equipment	Ahmedabad	1508/1509, Shapath V, S.G. Road Ahmedabad -380015
10	Office Equipment	Chandigarh	First Floor of SCO 33, Madhya Marg, Sector 7, Chandigarh – 160019
11	Office Equipment	Cochin	38/2955 E1, First Floor, MKS Square, Opp Oberon Mall, Edapally P.O,Cochin -682024)
12	Office Equipment	Mumbai	407, Dev Plaza, S V Road, Opp. Andheri Fire Station, Andheri (W), Mumbai-400058
13	Furniture – Fixtures	Ahmedabad	1104/05, Shapath V, S.G. Road Ahmedabad -380015
14	Furniture – Fixtures	Bangalore	38th A Cross, 11th Main Road, 4th T Block, Jayanagar, Bangalore -560041
15	Furniture – Fixtures	Delhi	702, Commercial Complex, Plot No. A-4, District Centre, Saket, New Delhi
16	Furniture – Fixtures	Mumbai	306, Dev Plaza, S V Road, Opp. Andheri Fire Station, Andheri (W), Mumbai-400058
17	Furniture – Fixtures	Ahmedabad	1508/1509, Shapath V, S.G. Road Ahmedabad -380015
18	Furniture – Fixtures	Chandigarh	First Floor of SCO 33, Madhya Marg, Sector 7, Chandigarh – 160019
19	Furniture – Fixtures	Cochin	38/2955 E1, First Floor, MKS Square, Opp Oberon Mall, Edapally P.O,Cochin -682024)

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

Ajay Jitendra T.

NEXION INTERNATIONAL PRIVATE LIMITED MORBI

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20	Furniture – Fixtures	Mumbai	407, Dev Plaza, S V Road, Opp. Andheri Fire Station, Andheri (W), Mumbai-400058
21	Furniture – Fixtures	Morbi	Morbi Halwad Highway
22	Computer Systems	Morbi	Morbi Halwad Highway
23	Vehicles	Morbi	Morbi Halwad Highway

Table C – Details of Intangible Assets

Sr. No.	Nature of Property	City	Location Address
1	Intangible Assets	Morbi	Morbi Halwad Highway

Table D – Details of Work in Progress

Sr. No.	Nature of Property	City	Location Address
1	Work In Progress	Morbi	Morbi Halwad Highway

Annexure 3 – Details of Bank account

Table A – Current and Working Capital

Sr. No.	Bank Name & City	Account No.	Type of Accounts
1	HDFC Bank, Morbi	03070330000355	Overdraft
2	HDFC Bank, Morbi	57500000032961	Overdraft
3	HDFC Bank, Morbi	57500000032951	Overdraft
4	ICICI Bank, Morbi	362451000021	Cash Credit
5	ICICI Bank, Morbi	362405000969	Current

Table B – Letter of Credit

Sr. No.	Bank Name	Beneficiary	Reference No.	Amount in Euro
1	HDFC Bank, Morbi	Vetriceramici SRL	101LC01230450006	90,150
2	HDFC Bank, Morbi	Vetriceramici SRL	101LC01230450007	90,150
3	HDFC Bank, Morbi	Vetriceramici SRL	101LC01231080001	115,180
4	ICICI Bank, Morbi	System Ceramics SPA	0024MLC00001624	453,425

For Nexion International Pvt. Ltd.

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Table C – Bank Guarantee

Sr. No.	Bank Name	Beneficiary	Reference No.	Amount
1	HDFC Bank, Morbi	Paschim Gujarat Vij Company Limited	101GT01160630002	238,18,169
2	HDFC Bank, Morbi	Gujarat Gas Limited	101GT01161280007	10,90,555

Table D – Credit Card and Forex Card

Sr. No.	Bank Name	Card No.	Currency	Type of Card
1	ICICI Bank, Morbi	4065 8300 1923 3455	AUD	Forex
2	ICICI Bank, Morbi	4065 8300 1923 3455	EURO	Forex
3	ICICI Bank, Morbi	4065 8300 1923 3455	USD	Forex
4	ICICI Bank, Morbi	4065 8300 1923 3471	EURO	Forex
5	ICICI Bank, Morbi	4065 8300 1931 8314	EURO	Forex
6	ICICI Bank, Morbi	4367 3300 0011 8331	EURO	Forex
7	HDFC Bank, Morbi	4718 6509 0015 1306	INR	Credit

Table E – Fixed Deposit

Sr. No.	Bank Name	Reference No.
1	HDFC Bank, Morbi	50300124544701
2	HDFC Bank, Morbi	50300136092430
3	HDFC Bank, Morbi	50300511632632
4	HDFC Bank, Morbi	50300537587860
5	HDFC Bank, Morbi	50300546873817
6	HDFC Bank, Morbi	50300552472072
7	HDFC Bank, Morbi	50300561441051
8	HDFC Bank, Morbi	50300707463381
9	HDFC Bank, Morbi	50300789208809
10	ICICI Bank, Morbi	362410000402
11	ICICI Bank, Morbi	362413002731
12	ICICI Bank, Morbi	362413002754

Table F – Term Loan

Sr. No.	Bank Name	Account /Reference No.
1	ICICI Bank, Morbi	603090026423
2	ICICI Bank, Morbi	603090025656

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

For Intent

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3	ICICI Bank, Morbi	603090025589
4	ICICI Bank, Morbi	603090025728
5	ICICI Bank, Morbi	603090028057
6	HDFC Bank, Morbi	101LN08202630004
7	HDFC Bank, Morbi	101LN01230250003
8	HDFC Bank, Morbi	101LN08202630015
9	HDFC Bank, Morbi	101LN08202620009
10	HDFC Bank, Morbi	101LN08202630006
11	HDFC Bank, Morbi	101LN08202630005
12	HDFC Bank, Morbi	101LN08202630009
13	HDFC Bank, Morbi	101LN06190250002
14	HDFC Bank, Morbi	101LN06183390001
15	HDFC Bank, Morbi	101LN08202620007
16	HDFC Bank, Morbi	101LN08202630017
17	HDFC Bank, Morbi	101LN08202620006
18	HDFC Bank, Morbi	101LN06190670002
19	HDFC Bank, Morbi	240LN08202620201
20	HDFC Bank, Morbi	240LN08202620205
21	HDFC Bank, Morbi	240LN08202630039
22	HDFC Bank, Morbi	240LN08202620203
23	HDFC Bank, Morbi	101LN08202620004
24	HDFC Bank, Morbi	101LN08202620008
25	HDFC Bank, Morbi	101LN08202630019
26	HDFC Bank, Morbi	101LN08202620003
27	HDFC Bank, Morbi	101LN01230070004
28	HDFC Bank, Morbi	101LN06183490001
29	HDFC Bank, Morbi	101LN06190770001
30	HDFC Bank, Morbi	101LN06190530002
31	HDFC Bank, Morbi	101LN08202630011
32	HDFC Bank, Morbi	101LN06190510002
33	HDFC Bank, Morbi	101LN08202620005
34	HDFC Bank, Morbi	101LN06190430001
35	HDFC Bank, Morbi	101LN01230240001
36	HDFC Bank, Morbi	101LN08160290002
37	HDFC Bank, Morbi	101LN08202620002
38	HDFC Bank, Morbi	101LN08202630018
39	HDFC Bank, Morbi	101LN08202630007
40	HDFC Bank, Morbi	101LN01230880001
41	HDFC Bank, Morbi	240LN08202620199
42	HDFC Bank, Morbi	101LN08202630016
43	HDFC Bank, Morbi	101LN08202630014
44	HDFC Bank, Morbi	101LN08202630001
45	HDFC Bank, Morbi	101LN06190170001



For Jitendra T...



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46	HDFC Bank, Morbi	101LN06190530001
47	HDFC Bank, Morbi	101LN08202630002
48	HDFC Bank, Morbi	240LN65210810004
49	HDFC Bank, Morbi	101LN06190430002
50	HDFC Bank, Morbi	101LN06190180002
51	HDFC Bank, Morbi	240LN08202620202
52	HDFC Bank, Morbi	240LN08202620200
53	HDFC Bank, Morbi	101LN08202630003
54	HDFC Bank, Morbi	101LN08202620001
55	HDFC Bank, Morbi	101LN08202630012
56	HDFC Bank, Morbi	101LN06190250003
57	HDFC Bank, Morbi	101LN06190510001
58	HDFC Bank, Morbi	240LN08202620204
59	HDFC Bank, Morbi	240LN08202630038
60	HDFC Bank, Morbi	101LN08202630008
61	HDFC Bank, Morbi	101LN06190670001
62	HDFC Bank, Morbi	101LN08202630010
63	HDFC Bank, Morbi	101LN08202630013
64	HDFC Bank, Morbi	101LN06190110001
65	HDFC Bank, Morbi	101LN06190390001
66	HDFC Bank, Morbi	101LN01230070002

Annexure 4 – Details of Gas connection

Sr. No.	Name	Customer No.
1	Gujarat Gas Limited (Industrial)	500000624118
2	Gujarat Gas Limited (Commercial)	500001240293
3	Gujarat Gas Limited (Domestic)	500001239936
4	Gujarat Gas Limited (Domestic)	500001239937
5	Gujarat Gas Limited (Domestic)	500001239938
6	Gujarat Gas Limited (Domestic)	500001239939
7	Gujarat Gas Limited (Domestic)	500001239940
8	Gujarat Gas Limited (Domestic)	500001239941
9	Gujarat Gas Limited (Domestic)	500001239942
10	Gujarat Gas Limited (Domestic)	500001239943
11	Gujarat Gas Limited (Domestic)	500001240154
12	Gujarat Gas Limited (Domestic)	500001240155
13	Gujarat Gas Limited (Domestic)	500001240156
14	Gujarat Gas Limited (Domestic)	500001240157
15	Gujarat Gas Limited (Domestic)	500001240158
16	Gujarat Gas Limited (Domestic)	500001240159
17	Gujarat Gas Limited (Domestic)	500001240160
18	Gujarat Gas Limited (Domestic)	500001240161

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Adar Jiveshar T.

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19	Gujarat Gas Limited (Domestic)	500001240162
20	Gujarat Gas Limited (Domestic)	500001240163
21	Gujarat Gas Limited (Domestic)	500001240164
22	Gujarat Gas Limited (Domestic)	500001240165
23	Gujarat Gas Limited (Domestic)	500001240166
24	Gujarat Gas Limited (Domestic)	500001240167
25	Gujarat Gas Limited (Domestic)	500001240168
26	Gujarat Gas Limited (Domestic)	500001240169
27	Gujarat Gas Limited (Domestic)	500001240170
28	Gujarat Gas Limited (Domestic)	500001240171
29	Gujarat Gas Limited (Domestic)	500001240172
30	Gujarat Gas Limited (Domestic)	500001240173
31	Gujarat Gas Limited (Domestic)	500001240174
32	Gujarat Gas Limited (Domestic)	500001240175
33	Gujarat Gas Limited (Domestic)	500001240176
34	Gujarat Gas Limited (Domestic)	500001240177
35	Gujarat Gas Limited (Domestic)	500001240178
36	Gujarat Gas Limited (Domestic)	500001240179
37	Gujarat Gas Limited (Domestic)	500001240180
38	Gujarat Gas Limited (Domestic)	500001240181
39	Gujarat Gas Limited (Domestic)	500001240182
40	Gujarat Gas Limited (Domestic)	500001240183
41	Gujarat Gas Limited (Domestic)	500001240184
42	Gujarat Gas Limited (Domestic)	500001240185
43	Gujarat Gas Limited (Domestic)	500001240186
44	Gujarat Gas Limited (Domestic)	500001240187
45	Gujarat Gas Limited (Domestic)	500001240188
46	Gujarat Gas Limited (Domestic)	500001240189
47	Gujarat Gas Limited (Domestic)	500001240190
48	Gujarat Gas Limited (Domestic)	500001240191
49	Gujarat Gas Limited (Domestic)	500001240192
50	Gujarat Gas Limited (Domestic)	500001240193
51	Gujarat Gas Limited (Domestic)	500001240194
52	Gujarat Gas Limited (Domestic)	500001240195
53	Gujarat Gas Limited (Domestic)	500001240196
54	Gujarat Gas Limited (Domestic)	500001240197
55	Gujarat Gas Limited (Domestic)	500001240198
56	Gujarat Gas Limited (Domestic)	500001240199
57	Gujarat Gas Limited (Domestic)	500001240200
58	Gujarat Gas Limited (Domestic)	500001240201
59	Gujarat Gas Limited (Domestic)	500001240202
60	Gujarat Gas Limited (Domestic)	500001240203
61	Gujarat Gas Limited (Domestic)	500001240204

Ajay Jitendra T.

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62	Gujarat Gas Limited (Domestic)	500001240205
63	Gujarat Gas Limited (Domestic)	500001240206
64	Gujarat Gas Limited (Domestic)	500001240207
65	Gujarat Gas Limited (Domestic)	500001240208
66	Gujarat Gas Limited (Domestic)	500001240209
67	Gujarat Gas Limited (Domestic)	500001240210
68	Gujarat Gas Limited (Domestic)	500001240211
69	Gujarat Gas Limited (Domestic)	500001240212
70	Gujarat Gas Limited (Domestic)	500001240213
71	Gujarat Gas Limited (Domestic)	500001240214
72	Gujarat Gas Limited (Domestic)	500001240215
73	Gujarat Gas Limited (Domestic)	500001240216
74	Gujarat Gas Limited (Domestic)	500001240217
75	Gujarat Gas Limited (Domestic)	500001240218
76	Gujarat Gas Limited (Domestic)	500001240219
77	Gujarat Gas Limited (Domestic)	500001240220
78	Gujarat Gas Limited (Domestic)	500001240221
79	Gujarat Gas Limited (Domestic)	500001240222
80	Gujarat Gas Limited (Domestic)	500001240223
81	Gujarat Gas Limited (Domestic)	500001240224
82	Gujarat Gas Limited (Domestic)	500001240225
83	Gujarat Gas Limited (Domestic)	500001240226
84	Gujarat Gas Limited (Domestic)	500001240227
85	Gujarat Gas Limited (Domestic)	500001240228
86	Gujarat Gas Limited (Domestic)	500001240229
87	Gujarat Gas Limited (Domestic)	500001240230
88	Gujarat Gas Limited (Domestic)	500001240231
89	Gujarat Gas Limited (Domestic)	500001240232
90	Gujarat Gas Limited (Domestic)	500001240233
91	Gujarat Gas Limited (Domestic)	500001240234
92	Gujarat Gas Limited (Domestic)	500001240235
93	Gujarat Gas Limited (Domestic)	500001240236
94	Gujarat Gas Limited (Domestic)	500001240237
95	Gujarat Gas Limited (Domestic)	500001240238
96	Gujarat Gas Limited (Domestic)	500001240239
97	Gujarat Gas Limited (Domestic)	500001240240
98	Gujarat Gas Limited (Domestic)	500001240241
99	Gujarat Gas Limited (Domestic)	500001240242
100	Gujarat Gas Limited (Domestic)	500001240243
101	Gujarat Gas Limited (Domestic)	500001240244
102	Gujarat Gas Limited (Domestic)	500001240245
103	Gujarat Gas Limited (Domestic)	500001240246
104	Gujarat Gas Limited (Domestic)	500001240247

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For Nexion International Private Ltd.
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105	Gujarat Gas Limited (Domestic)	500001240248
106	Gujarat Gas Limited (Domestic)	500001240249
107	Gujarat Gas Limited (Domestic)	500001240250
108	Gujarat Gas Limited (Domestic)	500001240251

Annexure 5 - Details of Registration with Various Authorities under respective laws, Bodies etc. including licenses and benefits arising out of the notifications.

Sr. No.	Name	Reference No.
1	Deputy Director Industrial Safety and Health, License to work a factory Form No.4, Factories Act,1948	31047
2	Employees' Provident Fund Organisation	GJRAJ1552642000
3	Legal Entity Identifier	3358001VJGZDPR1ZIZ03
4	Licence to Store Compressed gas in pressure vessel or vessels, Indian Explosives Act, 1884	S/HO/GJ/03/2039(S98650) Vessel No. YE-663 & YE-664
5	Legal Metrology Act, 2009 (Weight & Measurement)	2479850/MOR/2022/01
6	Certificate of Importer -Exporter Code (IEC)	2415005029
7	Gujarat Pollution Control Board (GPCB) -Consent to operate (Air & Water)	AWH-116948
8	The Gujarat Factories Act 1948 & the Gujarat Factories Rules 1963 (Rule 3) - (Approved Plant Layout)	DISH/F-PLAN/2022/2900
9	Industrial Entrepreneur Memorandum (IEM) - A - Ministry of Commerce & Industry - Large Scale	560/SIA/IMO/2015
10	Industrial Entrepreneur Memorandum (IEM) - B - Ministry of Commerce & Industry - Large Scale	628/IIM/PROD/2021
11	The Legal Metrology (Packed Commodities) Rules 2011	GUJ/ACLM/LM/300032/PCR/206
12	Registration - Cum - Membership Certificate, FIEO Gujarat Chapter - Ahmedabad	AHD/164/2020-2021

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13	One Star Export House, Directorate General of Foreign Trade	IEC- 2415005029 PAN AAVCS2567C File No. RJKSTATAPPLY00010774AM22
14	EPCG Scheme, Directorate General of Foreign Trade	2430003309, 2430003313, 2430003336, 2430003335, 2430003337, 2430003484, 2430003521
15	Letter of Undertaking, Central Goods and Services Tax Act, 2017	24AAVCS2567C1Z5
16	Bio Medical waste Collection, Transportation, Treatment and Disposal As per BMW Rules-2016	BMW-361026
17	The Factories Act, 1948 and The Gujarat factories Rules,1963. Chapter -1 (Having the Building stability certificate Form No 1 A)	Certificate Form No 1 A dtd. 15.10.2022 DIR/IS&H/F-PLANT/2017/24 DIR/IS&H/F-PLAN/2022/290
18	The Bombay Labour Welfare Fund Act, 1953	RAJ/0008210
19	PTRC No. (Employee) - Ahmedabad	PRC 010728001602
20	PTEC No - Profession Tax Registration No. (Company) – Ahmedabad	PEC 010728087253
21	Professional Tax - Unchi Mandal	Nexion International Pvt. Ltd.
22	ISO 9001:2015 Certificate	4410017391430
23	ISO 14001:2015 Certificate	4410417391430
24	ISO 45001:2018 Certificate	4412617391430
25	GS1 barcode subscription	89042722
26	Indian Green Building Council	IGBCMM180198
27	Airtel Ltd	1364695554
28	BSNL Ltd (Land Line Telephone)	02822- 242122
29	Website	www.nexiontiles.com, www.ispiratiles.com www.nexionsurfaces.net www.nexionsurfaces.in
30	CE Compliance Certificate	200307119101
31	SNI ISO 13006:2010 Certificate	250/0/SER/U-153/XI/2022
32	Certificate for China Compulsory Product Certification	2018112102001043
33	Indonesian Trademark	DID2022099013
34	Vodafone Idea Ltd.	42033477
35	Form II of CLRA,1970 (Principal Employer Registration Certificate)	MRB/2022/CLRA/6
36	EPR Registration, CPCB	20230520085448278 20

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37	Service Agreement, AMC or any other type of agreements.	All types of agreement which is in the name of Nexion International Private Limited will transfer to Nexion Surfaces Private Limited after approval from NCLT

Annexure 6 – Details of Vehicles along with the Insurance policies

Sr. No.	Name	Policies No.	Description & Registration No.	Type
1	Go Digit General Insurance Ltd.	D034823366/14 052021	Activa (GJ-36A-4122)	Vehicle Insurance
2	Reliance General Insurance Co Ltd	16242222311006 0578	Audi (GJ-36F-2226)	Vehicle Insurance
3	Reliance General Insurance Co Ltd	23129101856835 00000	Hero Splendor Plus (GJ-36AE-2622)	Vehicle Insurance
4	Icici Lombard General Insurance Co. Ltd.	305/223011762/ 00/B00	Activa (GJ-01UC-7883)	Vehicle Insurance
5	Tata Aig General Insurance Co Ltd	62005291840000	Innova Crysta (GJ-36AC-4122)	Vehicle Insurance
6	Tata Aig General Insurance Co Ltd	01574207860500	Innova (GJ-36B-4880)	Vehicle Insurance
7	Hdfc Ergo General Insurance Co Limited	23129101479064 01000	Hero Splendor (GJ-36AD-0364)	Vehicle Insurance
8	Reliance General Insurance Co Ltd	99179222343000 0211	Ambulance (GJ-36T-2136)	Vehicle Insurance
9	Tata Aig General Insurance Co Ltd	62000390580100	Innova Crysta (GJ-36L-1692)	Vehicle Insurance
10	Hdfc Ergo General Insurance Co Limited	20399468570200 0	Tata Nexon (GJ-36R-7364)	Vehicle Insurance
11	Tata Aig General Insurance Co Ltd	0159402477 04 00	Creta (GJ-36F-6354)	Vehicle Insurance
12	Iffco-Tokio General Insurnace	1-2P90UHY6	Bolero (GJ-36T-5122)	Vehicle Insurance
13	Iffco-Tokio General Insurnace	1-2P8ZYSCV	Tractor (GJ-36B-1428)	Vehicle Insurance
14	Iffco-Tokio General Insurnace	1-2P8ZFXBN	Tractor (GJ-36B-2981)	Vehicle Insurance
15	Iffco-Tokio General Insurnace	32181886	Loader & Crane	Vehicle Insurance

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For Director

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16	Icici Lombard General Insurance Co. Ltd.	TIL/10965381	Innova Crysta (GJ-36AJ-7774)	Vehicle Insurance
17	Tata Aig General Insurance Co Ltd	239626380	Accidental Policy (Manharshih)	Accidental Policy
18	Tata Aig General Insurance Co Ltd	239626337	Accidental Policy (Mahavirshih)	Accidental Policy
19	Tata Aig General Insurance Co Ltd	239626335	Accidental Policy (Patel Nikhil)	Accidental Policy
20	Tata Aig General Insurance Co Ltd	288743829	Accidental Policy (Kantibhai Store)	Accidental Policy
21	Tata Aig General Insurance Co Ltd	239626334	Accidental Policy (Jagdishbhai)	Accidental Policy
22	Tata Aig General Insurance Co Ltd	239626338	Accidental Policy (Savaliya Milan)	Accidental Policy
23	Tata Aig General Insurance Co Ltd	288743890	Accidental Policy (Hushenbhai)	Accidental Policy
24	Tata Aig General Insurance Co Ltd	239626333	Accidental Policy (Sonagra Dilip)	Accidental Policy
25	Icici Lombard General Insurance Co. Ltd.	4010/205872552 /02/000	Workmen Compensation	Workmen Compensation
26	Icici Lombard General Insurance Co. Ltd.	1003/260806976 /00/000	Fire & Peril Policy	Fire & Peril Policy
27	Icici Lombard General Insurance Co. Ltd.	1016/251442441 /00/000	Fire & Peril Policy	Fire & Peril Policy
28	Icici Lombard General Insurance Co. Ltd.	Payment Reference No. N153232484742722 Policy awaited	Group Health Insurance	Group Health Insurance
29	Icici Pru Life Insurance Co Ltd	00010275	Group Term Life Insurance	Group Term Life Insurance

Annexure 7 – Details of Trademarks

Sr. No.	Company Name	TM MARKS	Class	Application No.	Certificate No.
1	Simpolo Emilceramica Pvt. Ltd.	Coniwood	11	3353788	2253626

After Fitness Test

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2	Simpolo Emilceramica Pvt. Ltd.	Coniwood	19	3353787	2326623
3	Simpolo Emilceramica Pvt. Ltd.	Coniwood	20	3353786	2235861
4	Simpolo Emilceramica Pvt. Ltd.	Coniwood	21	3353785	1571032
5	Simpolo Emilceramica Pvt. Ltd.	Endless	11	3353780	1545636
6	Simpolo Emilceramica Pvt. Ltd.	Endless	19	3353779	1807296
7	Simpolo Emilceramica Pvt. Ltd.	Endless	20	3353778	1570804
8	Simpolo Emilceramica Pvt. Ltd.	Endless	21	3353777	1571586
9	Simpolo Emilceramica Pvt. Ltd.	Marmor'e	11	3316717	1611212
10	Simpolo Emilceramica Pvt. Ltd.	Marmor'e	20	3316719	1530679
11	Simpolo Emilceramica Pvt. Ltd.	Marmor'e	21	3316720	1532013
12	Simpolo Emilceramica Pvt. Ltd.	Runa	21	3353781	2326624
13	Simpolo Emilceramica Pvt. Ltd.	Marmor'e	19	3316718	NA
14	Simpolo Emilceramica Pvt. Ltd.	Runa	11	3353784	NA
15	Simpolo Emilceramica Pvt. Ltd.	Runa	19	3353783	NA
16	Simpolo Emilceramica Pvt. Ltd.	Runa	20	3353782	NA
17	Simpolo Tiles Pvt. Ltd.	Porceslab	11	2940581	1693777
18	Simpolo Tiles Pvt. Ltd.	Porceslab	19	2940580	1693805
19	Simpolo Tiles Pvt. Ltd.	Fiorano	11	2940579	1326608
20	Simpolo Tiles Pvt. Ltd.	Fiorano	19	2940576	1693685
21	Simpolo Tiles Pvt. Ltd.	Fiorano	20	2940575	1691959
22	Simpolo Tiles Pvt. Ltd.	Fiorano	21	2940574	1693594
23	Simpolo Tiles Pvt. Ltd.	Maranello	11	-	2007723
24	Simpolo Tiles Pvt. Ltd.	Maranello	19	2940572	1691985
25	Simpolo Tiles Pvt. Ltd.	Maranello	20	2940570	2007742
26	Simpolo Tiles Pvt. Ltd.	Maranello	21	2940571	2007757
27	Simpolo Tiles Pvt. Ltd.	Porceslab	20	2940577	1691846
28	Simpolo Tiles Pvt. Ltd.	Porceslab	21	2940578	1694374

For Director

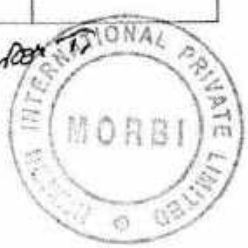
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29	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	1	3161054	2327887
30	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	2	3161055	2135482
31	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	3	3161056	1486166
32	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	4	3161057	2327502
33	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	5	3161058	2243127
34	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	6	3161059	2140995
35	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	7	3161060	2237401
36	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	8	3161061	1459718
37	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	9	3161062	NA
38	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	10	3161063	NA
39	Nexion International Pvt. Ltd.	Nexion	11	3085469	NA
40	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	11	3161064	2327533
41	Nexion International Pvt. Ltd.	Nexion	11	4203869	2891305
42	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	12	3161065	1440322
43	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	13	3161066	1435423





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44	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	14	3161067	1440328
45	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	15	3161068	1440247
46	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	16	3161069	1435444
47	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	17	3161070	1440337
48	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	18	3161071	1439792
49	Nexion International Pvt. Ltd.	Nexion	19	3085470	1344157
50	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	19	3158059	1508679
51	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	19	3161072	1509179
52	Nexion International Pvt. Ltd.	Nexion	20	3085471	1715573
53	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	20	3161073	1509226
54	Nexion International Pvt. Ltd.	Nexion	21	3085472	1344134
55	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	21	3161074	1509246
56	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	22	3161075	1469738
57	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	23	3161076	1469861
58	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	24	3161077	1764129
59	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	25	3161078	1764128



For Jitendra T.



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60	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	26	3161079	1764130
61	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	27	3161080	1469821
62	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	28	3161081	1469695
63	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	29	3161082	1469319
64	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	30	3161083	1764127
65	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	31	3161084	1473507
66	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	32	3161085	1473506
67	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	33	3161086	1473510
68	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	34	3161087	1473635
69	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	35	3161088	1473638
70	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	36	3161089	1473636
71	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	37	3161090	2237180
72	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	38	3161091	1473166
73	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	39	3161092	2237406
74	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	40	3161093	1473586

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75	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	41	3161094	1469388
76	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	42	3161095	1469387
77	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	43	3161096	1469818
78	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	44	3161097	1469820
79	Nexion International Pvt. Ltd.	Nexion With Miscellaneous Device	45	3161098	1469865
80	Nexion International Pvt. Ltd.	Apuane	11	3609926	1772315
81	Nexion International Pvt. Ltd.	Apuane	19	3609927	1770915
82	Nexion International Pvt. Ltd.	Apuane	20	3609928	1770968
83	Nexion International Pvt. Ltd.	Apuane	21	3609929	1770957
84	Nexion International Pvt. Ltd.	Bocciardato	19	4007940	2178048
85	Nexion International Pvt. Ltd.	Essenze	19	4007941	2857507
86	Nexion International Pvt. Ltd.	Ispira	11	4087122	2244685
87	Nexion International Pvt. Ltd.	Ispira	19	4087121	2244684
88	Nexion International Pvt. Ltd.	Ispira	20	4087123	2244686
89	Nexion International Pvt. Ltd.	Ispira	21	4087124	2857722
90	Nexion International Pvt. Ltd.	Kair	19	3609923	1770970
91	Nexion International Pvt. Ltd.	Kair	20	3609924	1772293
92	Nexion International Pvt. Ltd.	Kair	21	3609925	1892913
93	Nexion International Pvt. Ltd.	Leptis	19	4007935	2178072

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For Nexion International Pvt. Ltd.

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94	Nexion International Pvt. Ltd.	Pettinato	19	4007939	2178049
95	Nexion International Pvt. Ltd.	Pietra Del Cardoso	19	4007937	2178050
96	Nexion International Pvt. Ltd.	Pompeii	11	3935716	2112076
97	Nexion International Pvt. Ltd.	Pompeii	19	3935717	2112075
98	Nexion International Pvt. Ltd.	Rigato	19	4007938	2488218
99	Nexion International Pvt. Ltd.	Signature	19	4007936	NA
100	Nexion International Pvt. Ltd.	Terraelino	19	5015820	2875373
101	Nexion International Pvt. Ltd.	Terrælino	19	5015819	2875372
102	Nexion International Pvt. Ltd.	Travertine	19	4007942	2178047
103	Nexion International Pvt. Ltd.	Kair	11	3609922	NA
104	Nexion International Pvt. Ltd.	Pompeii	20	3935718	NA
105	Nexion International Pvt. Ltd.	Pompeii	21	3935719	NA

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Annexure 8 - Details of Certificate of Calibration Equipment's

Sr. No.	Certificate No.	Instruments Name	ID. No.	Make
1	23051163	Weighing Balance	NRD-02E	Uniblock
2	23051164	Weighing Balance	NRD-02A	Jay Electronics
3	23051165	Weighing Balance	NRD-03A	Citizen
4	23051166	Weighing Balance	NRD-02B	Reptec
5	23051167	Weighing Balance	NRD-02C	Reptec
6	23051168	Weighing Balance	NRD-02D	---
7	23051169	Weighing Balance	NRD-02F	Uniblock
8	23051170	Pressure Gauge	NRD-09A	Micro
9	23051171	Pressure Gauge	NRD-09B	HIGBIG
10	23051172	MOR Testing Machine	NRD-14A	Shiwkon
11	23051173	MOR Testing Machine	NRD-13A	Shiwkon

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12	23051174	MOR Testing Machine	NRD-12A	Shiwkon
13	23051175	Temperature Controller	NRD-22A	Multispan
14	23051176	Temperature Controller	NRD-22B	Multispan
15	23051177	Temperature Controller	NRD-22C	Multispan
16	23051178	Digital Vernier Caliper	04579853	Yuri
17	23051179	MOR Testing Machine	KILN-MOR-1	Shiwkon
18	23051180	Digital Vernier Caliper	04415845	Yuri
19	23051181	Weighing Balance	PR-WB-01	Reptec
20	23051182	Test Sieve	SD-M-25	Jayant
21	23051183	Test Sieve	SD-M-36	Jayant
22	23051184	Test Sieve	SD-M-45	Jayant
23	23051185	Test Sieve	SD-M-60	Jayant
24	23051186	Test Sieve	SD-M-85	Jayant
25	23051187	Test Sieve	SD-M-100	Jayant
26	23051188	Test Sieve	SD-M-120	Jayant
27	23051189	Temperature Controller	PR-MO-2	Multispan
28	23051190	Digital Vernier Caliper	17092754	Yuri
29	23051191	Temperature Controller	GP/HAO-04	Multispan
30	23051192	Weighing Balance	GP/WB-01	Reptec
31	23051193	Weighing Balance	GP/WB-02	Reptec
32	23051194	Weighing Balance	DP-WB-1	Jay Engineering
33	23051195	MOR Testing Machine	PR-MOR-01	Shiwkon
34	23051196	Weighing Balance	GL-WB-4	Shiwkon
35	23051197	Weighing Balance	GL-WB-3	Shiwkon
36	23051198	Simple Vernier Caliper	QA-VC-01	Yuri
37	23051199	Simple Vernier Caliper	QA-VC-02	Yuri
38	23051200	Weighing Balance	WB-216055017	Reptec
39	23051201	Temperature Controller	QA-HAO-01	Shivtronics
40	23051202	Pressure Gauge	QA/PG/01	ARBUDA

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41	23051203	Test Sieve	TS-01	Jayant
42	23051204	Test Sieve	TS-02	Jayant
43	23051205	Test Sieve	TS-03	Jayant
44	23051206	Test Sieve	TS-04	Jayant
45	23051207	Test Sieve	TS-05	Jayant
46	23051208	Test Sieve	TS-06	Jayant
47	23051209	Test Sieve	TS-07	Jayant
48	23051210	Weighing Balance	PR-WB-01	Reptec
49	23051211	Temperature Controller	SD-MO-1	Multispan
50	23053001	Weighing Balance	ST-WB-01	---

Annexure 9 - Details of Certificate of Lifting Equipment

Sr. No.	Certificate No.	Description of Equipment's	Form No.	Serial No.
1	TBE/CE/NIPL/2022/ARC/03	Air Receiver Compressor 6.9 Bar	11	1109
2	TBE/CE/NIPL/2022/ARC/02	Air Receiver Compressor 6.9 Bar	11	1110
3	TBE/CE/NIPL/2022/ARC/01	Air Receiver Compressor 6.9 Bar	11	1111
4	NIPL/2023/ART/01	Air Receiver Tank 4000 Ltr.	11	ART-01
5	NIPL/2023/ART/03	Air Receiver Tank 6200 Ltr.	11	ART-02
6	NIPL/2023/ART/04	Air Receiver Tank 6200 Ltr.	11	ART-03
7	NIPL/2023/ART/02	Air Receiver Tank 4000 Ltr.	11	ART-04
8	NIPL/2022/EWH/02	Indef Electric Wire Rope Host 3 Ton	10	K1617007312
9	NIPL/2022/EWH/03	Indef Electric Wire Rope Host 3 Ton	10	K1617007313
10	NIPL/2022/EWH/01	Indef Electric Wire Rope Host 2.5 Ton	10	K1617005614
11	NIPL/2022/FL/01	Forklift Voltas Evx-30 3 Ton	10	192728
12	NIPL/2022/FL/02	Forklift Voltas Evx-30 3 Ton	10	192535
13	NIPL/2022/FL/03	Forklift Toyota Evx-30 3 Ton	10	26650
14	NIPL/2022/FL/04	Forklift Voltas Dvx-506 5 Ton	10	171967

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Adar Jitendra

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15	NIPL/2022/FL/05	Forklift -Tale-Er P3Tux 3.5 Ton	10	ERP-35 UX 4500
16	NIPL/2022/PWB/01	Polyster Web Belt 5 Ton	10	42555-65657
17	NIPL/2022/PWB/02	Polyster Web Belt 10 Ton	10	4255-65969
18	NIPL/2022/WRS/01	Wire Rope Siling 7 Ton	10	NXIL/WRS/01
19	TBE/CE/NIPL/2023/WL/01	Wheel Loader 3 M3	10	A16WL0436
20	NIPL/2023/MH/01	Material Hoist 2 Ton	9	NXPL/MH/02
21	NIPL/2022/MH/01	Mobile Hydra Crane 7.2 Ton	10	ACE MODEL 14 XW 616 128 560

All other tangible or non-tangible assets, other than above mentioned, which are utilized by the demerged undertaking or belonging to the demerged undertaking or over which the demerged undertaking has rights, interest or claims of whatever nature.

For Nexion International Private Limited

Director

NEXION INTERNATIONAL PRIVATE LIMITED MORBI

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